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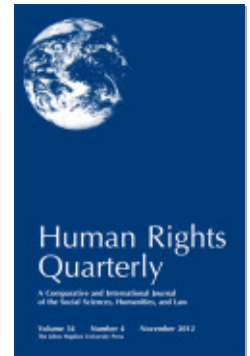
A Geography of Human Rights Abuses

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*Roger Mark Selya**

ABSTRACT

What can geography as a discipline contribute towards a better understanding of human rights issues? Based on an analysis of three maps, selected from a larger set of thirty-two generated from data abstracted from 720 Amnesty International Freedom Writers Letters, this study finds that the number and frequency of human rights abuses over the past twenty years has remained stable at best. A set of ten confounding factors are indentified to explain this lack of progress towards improving worldwide human rights. This article concludes that geographers and human rights scholars could profit in their work by collaborating and consulting with one another's research.

I. INTRODUCTION

Although geography as a discipline is not commonly associated with describing and explaining human rights abuses or providing policy remedies for such abuses, it would seem that many feel it definitely should be. Rex Honey, for example, has issued an explicit call for political geographers to lend their expertise to the study of human rights.¹ He stresses three points in his plea for geographers to engage in such research. First, geography explores the context in which human rights struggles occur and brings to the study of human rights two kinds of knowledge: knowledge of cultures and knowledge of the nature-society nexus. As such, omitting the geographical background

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1. Rex Honey, *Human Rights, in* GEOGRAPHY IN AMERICA AT THE DAWN OF THE 21ST CENTURY 730 (Gary L. Gaile & Cort J. Willmott eds., 2003).

and consequences of human rights issues is likely to be incomplete because it fails to capture both the cultural struggles over what a just society is and the milieu of interrelated sites of injustice. Conversely, according to Honey, in order for geography as a discipline to fulfill its potential as a scholarly endeavor examining the human condition, human rights must be part of its research focus.

At present, Honey notes that there are two traditions in the geographic approach to human rights. An older, implicit approach has focused on human rights problems such as racism, slavery, social justice, poverty, and electoral violations without specific reference to any extant human rights doctrines or agreements. In their presidential addresses, for example, many past presidents of the Association of American Geographers, such as Richard Hartshorne, Richard Morrill, Harold Rose, Gilbert White, and Julian Wolpert, have called for the eradication of these wrongs. In contrast, the second, more contemporary tradition has actively and formally advocated for democracy and pushed for civil and political liberties based on both the French and United States Revolutions. In some cases, scholars have lobbied or advocated for a communal rights agenda emphasizing social and economic benefits: wages, jobs, education, and health care.

II. AN ANOMALY

The proliferation of reports, country studies, and documentaries issued during the past two decades by a growing variety of national and international governments and human rights organizations would suggest that there should be sufficient data to prepare a variety of geographic analyses of the global human rights situation. Oddly enough, only one article by a geographer has ever appeared in the *Human Rights Quarterly*.² This anomaly pervades the main professional organization of geographers, the American Association of Geographers (AAG), which sponsors a cooperative program with the American Association for the Advancement of Science (AAAS). Its goal is to expand an array of projects and programs to engage geographers as scientists in human rights issues. As of January 2009 the two organizations anticipated creating a new Science and Human Rights Coalition, establishing an AAG clearinghouse on geographic research and human rights in cooperation with an AAAS project on geospatial technologies and human rights.³ Annual meetings of the AAG now feature special sessions on hu-

2. Jean Connelly Carmalt, *Rights and Place: Using Geography in Human Rights Work*, 29 HUM. RTS. Q. 68 (2007).

3. Doug Richardson & Lars Bromley, *Geography and Human Rights*, 43 AAG NEWSLETTER 1, 2 (Sept. 2008).

man rights. One such session at the 2009 meetings was a workshop entitled "Human Rights 101 for Geographers."⁴ It is apparent that the professional commitment and infrastructure for geographers to contribute to the study of human rights is now in place.

The above discussion notwithstanding, geographers have in fact published a considerable body of literature on the subject of human rights, but the vast amount of it has appeared in geographic journals. For example, in the *Political Geography Quarterly*, some 132 articles with human rights as a focus were published between 1982 and 1991; in *Political Geography*, between January 1992 and June 2011, some 712 articles with human rights as a focus were published; geographers also published some 833 human rights related articles in *Antipod: A Radical Journal of Geography*, over the period January 1997 through June 2011. These materials demonstrate that geographers have made meaningful, albeit unrecognized, contributions to understanding the relationships between human rights abuses and borders, development,⁵ environmental, ethnic, land and resource conflicts, and social justice.⁶ Furthermore, the use of GIS and Remote Sensing has permitted the documentation of where abuses have occurred even when it is difficult for observers to directly visit suspect locations.⁷

Why then are insights of geographers not part of the human rights discourse? Several reasons are immediately apparent. First, to satisfy the demands of department heads, tenure committees, and deans, geographers interested in human rights publish almost exclusively in geography journals,

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4. AAG Annual Meeting Highlights, 45 AAG NEWSLETTER 5 (Apr. 2010).
 5. Brij Maharaj, *Geography, Human Rights and Development: Reflections from South Africa*, 36 GEOFORUM 133 (2005).
 6. Karen Bakker, *The "Commons" versus the "Commodity": Alter-Globalization, Anti-privatization and the Human Right to Water in the Global South*, 39 ANTIPODE 430 (2007); Nicholas Blomley & Geraldine Pratt, *Canada and the Political Geographies of Rights*, 45 CANADIAN GEOGRAPHER 151 (2001); Orna Blumen & Sharon Halevi, *Staging Peace Through a Gendered Demonstration: Women in Black in Haifa, Israel*, 99 ANNALS AM. ASS'N GEOGRAPHERS 977 (2009); Jeremy J. Brigham, *Glock Gun Spiel: A Case Study of Political Geography and Human Rights*, 45 FOCUS 7 (1998); Nick Gill, *Tracing Imaginations of the State: The Spatial Consequences of Different State Concepts Among Asylum Activist Organisations*, 42 ANTIPODE 1048 (2010); Fran Klodawsky, *Recognizing Social and Economic Rights in Neo-Liberal Times: Some Geographic Reflections*, 45 CANADIAN GEOGRAPHER 167 (2001); Martha L. Henderson, *Geography, First Peoples, and Social Justice*, 82 GEOGRAPHICAL REV. 278 (1996).
 7. Hugo deVos, Joost Jongerden & Jacob Van Etten, *Images of War: Using Satellite Images for Human Rights Monitoring in Turkish Kurdistan*, 32 DISASTERS 449 (2008); Marguerite Madden & Amy Ross, *Genocide and GIScience: Integrating Personal Narrative and Geographic Information Science to Study Human Rights*, 61 PROF. GEOGRAPHER 508 (2009); Michael K. Steinberg, Carrie Height, Rosemary Mosher & Mathew Bampton, *Mapping Massacres: GIS and State Terror in Guatemala*, 37 GEOFORUM 62 (2006); Frank D.W. Witmer & John O'Loughlin, *Satellite Data Methods and Application in the Evaluation of War Outcomes: Abandoned Agricultural Land in Bosnia-Herzegovina After the 1992-1995 Conflict*, 99 ANNALS ASS'N AM. GEOGRAPHERS 1033 (2009).

especially those that focus on political geography. Moreover, regardless of where geographers publish, they rarely refer to the broader human rights literature. If they do reference non-geographic materials, they are most likely to draw from contemporary materials in political science or international relations. Finally, in many geographic papers dealing with human rights, the human rights component frequently gets lost. So for example, Nurit Kliot's article on refugees and human rights provides considerable detail regarding their number and places of origin as well as their places of refuge. But the human rights aspect of the plight of the refugees is only implied.⁸

The present study seeks to provide an example of a geographic analysis of a human rights issue using a multidisciplinary approach. By fulfilling this goal it is hoped that on the one hand those in the field of human rights research will consider looking to geography for insights and new paths of research, and on the other hand that geographers will explicitly include the human rights literature in their work.

III. AN EXAMPLE OF A GEOGRAPHIC ANALYSIS OF A HUMAN RIGHTS ISSUE

The question I wish to explore is whether or not there has been a change in the prevalence of the spatial patterns of human rights abuses over the period 1986–2006. There are ample reasons to speculate that such changes might or should have occurred. The end of the Cold War, the fall of the Soviet Union, the 1997 Asian Financial Crisis, the spread of globalization and economic development, and the end of the “dirty wars” in Latin America have all had the potential for enhancing respect for human rights and reducing human rights abuses. So my working hypothesis will be that related sets of economic and political changes have in fact led to improvements in human rights, and that such improvements can be seen in an examination of maps showing human rights abuses over time. Possible changes in the spatial distribution of human rights abuses are dealt with as follows: first, the data set used will be presented; then, maps of the number, percent, and prevalence of human rights abuses will be described and analyzed. Finally, materials that can provide an explanation for the maps and an answer to the question regarding possible changes in the spatial distribution of rights abuses will be presented.

8. N. Kliot, *The Era of Homeless Man*, 72 *GEOG.* 109 (1987).

IV. DATA SOURCES

Over the past twenty-five years the significant increase in the number of governmental and nongovernmental organizations (NGOs) concerned with human rights situations has spawned a plethora of topical and regional reports devoted to the status of those rights. The same can be said of the scholarly literature on human rights. However, it is widely recognized that it is extremely difficult to use this massive literature to do both longitudinal and cross-cultural analysis due to problems regarding the accuracy, validity, and comparability of data, as well as the differences in scale, methodologies, measuring systems, and data processing techniques employed in these reports, articles, and monographs.⁹ Our research uses a database with a twenty year history. This database is made up of the collected model letters used in the Amnesty International USA (AI) Freedom Writers initiative. Each month, AI provided members of the initiative with three letters to be sent to heads of government or state, ministries of justice, or law enforcement officials, each letter describing a specific case of human rights abuse in their country. In all, there were 720 letters available for use. The letters for the period September 1986 to August 2006 were accessed on 20 November 2006 at the Amnesty International Archive located at Columbia University.¹⁰ Letters missing from this archive were provided by Ellen Moore, then of the AI Urgent Action Office, located in Nederland, Colorado. Letters for September

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9. Russel Lawrence Barsh, *Measuring Human Rights: Problems of Methodology and Purpose*, 15 HUM. RTS. Q. 87 (1993); Kenneth A. Bollen, *Political Rights and Political Liberties in Nations: An Evaluation of Human Rights Measures, 1950 to 1984*, 8 HUM. RTS. Q. 567 (1986); Richard P. Claude & Thomas B. Jabine, *Exploring Human Rights Issues with Statistics*, in HUMAN RIGHTS AND STATISTICS: GETTING THE RECORD STRAIGHT 5 (Thomas B. Jabine & Richard P. Claude eds., 1992); Mark Gibney & Matthew Dalton, *The Political Terror Scale*, 4 POLICY STUD. & DEVELOPING NATIONS 73 (1996); Robert Justin Goldstein, *The Limitations of Using Quantitative Data in Studying Human Rights Abuses*, 8 HUM. RTS. Q. 607 (1986); Robert Justin Goldstein, *The Limitations of Using Quantitative Data in Studying Human Rights Abuses*, in HUMAN RIGHTS AND STATISTICS, *supra*, at 35; Michael Haas, *Empirical Dimensions of Human Rights*, in HUMAN RIGHTS AND DEVELOPING COUNTRIES, VOL. 4: POLICY STUDIES AND DEVELOPING NATIONS 43 (David Louis Cingranelli ed., 1996); MICHAEL HAAS, *IMPROVING HUMAN RIGHTS* (1994); Steven C. Poe, *Does Region Matter in Provision of the Human Right to Physical Integrity? An Empirical Examination*, in HUMAN RIGHTS AND DIVERSITY: AREA STUDIES REVISITED 59 (David P. Forsythe & Patrice C. McMahon eds., 2003); Douglas A. Samuelson & Herbert F. Spier, *Use of Incomplete and Distorted Data in Inference About Human Rights Violations*, in HUMAN RIGHTS AND STATISTICS, *supra*, at 62; James C. Strouse & Richard P. Claude, *Empirical Comparative Rights Research: Some Preliminary Tests of Development Hypotheses*, in COMPARATIVE HUMAN RIGHTS 51 (Richard P. Claude ed., 1976).
 10. Access to the archive, located in the Rare Book and Manuscript Library, Butler Library, where they are a part of the collection of the Center for Human Rights Documentation and Research, was made possible through the good offices of Csaba Szilagyi and Catherine Carson.

2004 through August 2006 were in my files. It must be recognized that the letters represent but a sample of the human rights cases AI is concerned with. Moreover, there are some obvious, glaring gaps in the geographical coverage. Some countries with questionable human rights records, such as North Korea (the Democratic People's Republic of Korea), have never been cited in these letters, presumably because AI does not have field workers there to identify, report, verify, and continuously monitor abuses.

In addition to the country and date of alleged abuses, the following information was extracted from the letters: the precise nature of the abuse or abuses, the number and names of individuals said to have been abused, and any extenuating circumstances, such as abuse targeting human rights, or labor union activists. For mapping purposes the data on abuses by country were grouped into five periods: 1986–2006, 1986–1991, 1992–1996, 1997–2001, and 2002–2006. For each of the five periods data were mapped using three separate variables: number of abuses by country, percent of total abuses, and prevalence of abuses per 1 million inhabitants. One map for the entire study period was generated to show the location quotient of abuses (Figure 1).¹¹ Additional maps were created showing the spatial distribution of fifteen types of abuses described in the letters. A separate map showing the total number of abuse types for which a country was cited was also produced. In all, thirty-two maps were generated.

Only five maps are included in this article, however. There is a strong correlation for each of the three measures of abuse for the five time period maps and for the maps showing number and percent of abuse citations (Table 1). In contrast there is a very low correlation ($r_p=0.151$) between the maps showing number and prevalence rate and percent of total abuses and prevalence rate. The entire map set, as a well as a comprehensive bibliography of works consulted in writing this article, can be accessed under the author's name at www.uc.edu/geography as well as at the Archives and Rare Book Department, Langsam Library, University of Cincinnati.

V. DESCRIPTION AND ANALYSIS OF THE MAPS

At first glance the map showing the prevalence of human rights abuses for the entire study period (Figure 2) seems cluttered and difficult to interpret.

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11. A location quotient (Lq) is a coefficient comparing some quality of an area with a specified norm. A Lq equal to one indicates that the area in question is represented in exactly the same proportion as the norm; an Lq of less than one indicates an under-representation against the norm; a Lq greater than one suggest the area has more than its "fair share" against the norm. See PETER HAGGETT, *LOCATIONAL ANALYSIS IN HUMAN GEOGRAPHY* 236 (1966); R.J. JOHNSTON, DEREK GREGORY & DAVID M. SMITH, *THE DICTIONARY OF HUMAN GEOGRAPHY* 339 (3d ed. 1994); DAVID M. SMITH, *PATTERNS IN HUMAN GEOGRAPHY: AN INTRODUCTION TO NUMERICAL METHODS* 161–62 (1975). For Figure 1, each country's percent of total cited abuses was compared to its percent of world population.

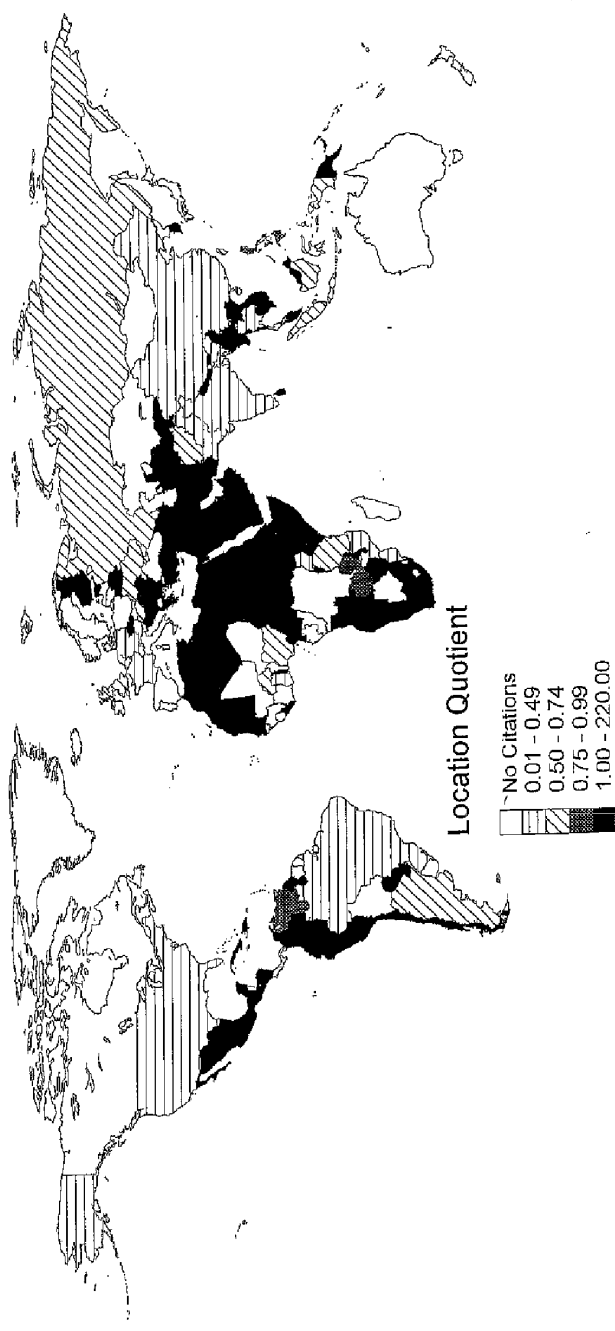


Figure 1. Location Quotients

Table 1. Human Rights Citations Cross- Correlations

NUMBER OF CITATIONS	Total No .Citations 1986-2006	No. Citations 1986-1991	No. Citations 1991-1996	No. Citations 1996-2001	No. Citations 2001-2006
Total No. Citations 1986-2006	*	0.764	0.795	0.856	0.677
No. Citations 1986-1991	0.764	*	0.522	0.674	0.359
No. Citations 1991-1996	0.795	0.522	*	0.689	0.275
No. Citations 1996-2001	0.856	0.674	0.689	*	0.463
No. Citations 2001-2006	0.677	0.674	0.359	0.275	*
PERCENT CITATIONS	% Total Citations 1986-2006	% Citations 1986-1991	% Citations 1991-1996	% Citations 1996-2001	% Citations 2001-2006
% Total Citations 1986-2006	*	0.763	0.775	0.800	0.784
% Citations 1986-1991	0.763	*	0.471	0.528	0.514
% Citations 1991-1996	0.775	0.471	*	0.551	0.720
% Citations 1996-2001	0.800	0.528	0.551	*	0.521
% Citations 2001-2006	0.784	0.514	0.720	0.521	*
CITATION Citations RATES	Rate for Total Citations 1986-2006	Rate for Citations 1986-1991	Rate for Citations 1991-1996	Rate for Citations 1996-2001	Rate for Citations 2001-2006
Rate for Total Citations 1986-2006	*	0.823	0.834	0.861	0.777
Rate for Citations 1986-1991	0.823	*	0.640	0.562	0.492
Rate for Citations 1991-1996	0.834	0.640	*	0.632	0.445
Rate for Citations 1996-2001	0.861	0.562	0.632	*	0.662
Rate for Citations 2001-2006	0.777	0.492	0.445	0.662	*

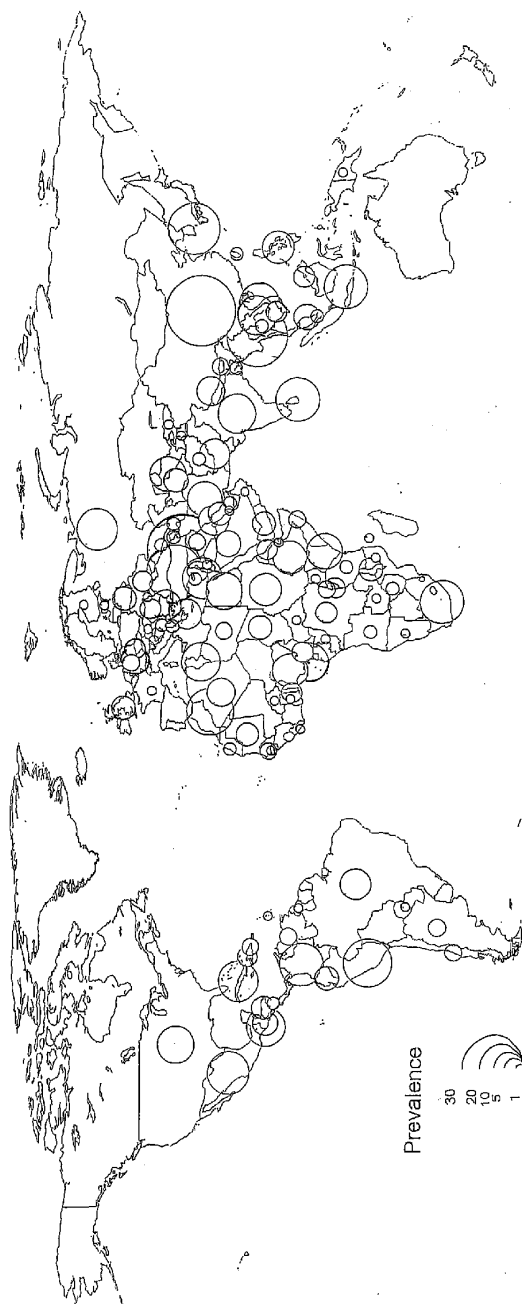


Figure 2. Total Number of Human rights Citations, 1986–2006

There appear to be few countries that were not cited at some point in time. In fact, a simple headcount of countries shows that seventy-two of them, amounting to 37.5 percent of all the countries and territories in the world, were never cited for abuses. A regional¹² breakdown (Table 2) of the percent of countries that were accused of human rights abuses further qualifies our first impression of the map. There is a wide range of what percent of each region's countries were cited. The Pacific Basin (including Australia and New Zealand) and the Caribbean Basin appear relatively immune to human rights abuse. At the opposite end of the spectrum, the countries that make up the constellation of the Former Soviet Union—Armenia, Belarus, Georgia, Moldova, Russia, and Ukraine—seem particularly prone to abuses. Europe occupies a place slightly above the low end, while the remaining regions cluster towards the high end. A regional subdivision of Europe suggests that Eastern and Southern Europe are more prone to human rights abuses than the Western and Northern sections. A breakdown of Asia shows that only slightly more than a third of the countries in East Asia were cited, while the other regions are all in the high 80 percent to 90 percent range of abuse. Finally, by looking at the citation records for individual countries (Tables 3 and 4) it is possible to see which countries are the chronic abusers of human rights. For each study period there appear to be on average fifteen chronic abusers. The lists do contain repeat offenders, such as China, Myanmar, and Syria, although there is also some movement of countries on and off these lists. However, China, Myanmar, and Syria have the dubious honor of having been cited in all four time periods of the study. In rank order, Asia appears to be the most abusive region, followed by the Middle East and North Africa, Latin America, and Africa. These findings parallel those of Diamond and Richards, both of whom argue that the geographic patterns of human rights performance appear to reflect major cultural or civilizational roots.¹³

There is one disadvantage to relying on a map showing the prevalence of abuse citations: it is lacking a demographic context. To provide one, Figure 3 shows the rate of citations per million population. Using this metric, twenty countries out of the 120 cited for human rights abuses can be considered

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12. On the arbitrary nature of regional divisions of the world see MARTIN W. LEWIS & KÄREN W. WIGEN, *THE MYTH OF CONTINENTS: A CRITIQUE OF METAGEOGRAPHY* (1997). The regional breakdown used in this paper was modified from LES ROWNTREE, ET AL., *GLOBALIZATION AND DIVERSITY: GEOGRAPHY OF A CHANGING WORLD* (3d ed. 2011) by including: Afghanistan in South Asia, and Mongolia in East Asia.
 13. LARRY DIAMOND, *DEVELOPING DEMOCRACY: TOWARDS CONSOLIDATION* 198 (1999); David L. Richards, *The Civilizational Geography of Government Respect for Human Rights, 1981–1999*, in *HUMAN RIGHTS AND DIVERSITY*, *supra* note 9, at 25. Richards also notes the strong link between respect for human rights and strong democratic forms of government. *Id.* at 34. In contrast the theme of *HUMAN RIGHTS IN ASIA AND THE PACIFIC* (James T. Lawrence ed., 2004), is that virtually all countries have a record of human rights abuses at some scale.

Table 2. Percent Countries Cited for Human Rights Abuses by Region and Sub-region

<i>Region</i>	<i>Percent</i>	<i>Sub-region</i>	<i>Percent</i>
North America	66.0		
Caribbean	19.0		
Latin America	70.6		
Europe	35.9		
		North	22.2
		West	20.0
		East	66.6
		South	42.8
Former Soviet Union	100.0		
Africa	61.0		
Asia	83.6		
		Central	85.7
		East	37.5
		Southeast	90.9
		South	87.5
		Southwest and Northern Africa	95.5
Pacific	11.8		

the worst abusers (Table 6). Twelve of these (Bahrain, Bosnia-Herzegovina, Brunei, Djibouti, El Salvador, Equatorial Guinea, Guyana, Lebanon, Mauritania, Qatar, United Arab Emirates, and Western Sahara) were not listed in Tables 3 or 4. The regional groupings of these twenty countries also differ from that found in Table 2: now the Middle East, Africa, and Latin America, in that order, appear to be the regions where abuse is most likely to occur.

Finally, the map of locational quotients of human rights prevalence (Figure 1) needs to be analyzed. In some ways this metric may be considered a “fair share” approach to describing the distribution of human rights abuses, since the location quotient compares a country’s share of the total number of abuses with its share of the total world population. We thus can get a sense of which countries are over or under represented in the spectrum of human rights abusers. By this standard then, thirty-two countries, including China (which by the sheer number of citations can be considered a major rights abuser) with location quotients below 1.00 appear to have abuse rates lower that we might expect given the size of the populations. On the other hand, the remaining eighty-eight countries, with location quotients above 1.00, clearly form easily recognized regions, such as the Middle East and North Africa, Eastern and Southern Africa, and large parts of Latin America, the Caribbean, and South and Southeast Asia, where human rights violations are persistent and notorious. Moreover, it will come as no surprise that countries that underwent devolution and civil wars, such as Yugoslavia and

Table 3. Worst Human Rights Records by 5 Year Period

Sept. 1986-Aug. 1991		Sept. 1991-Aug. 1996		Sept. 1996-Aug. 2001		Sept. 2001-Aug. 2006	
Country	No. Times Cited	Country	No. Times Cited	Country	No. Times Cited	Country	No. Times Cited
Syria	12	China	10	Syria	8	Syria	9
China	8	Sri Lanka	9	S.Korea	7	Myanmar	8
Bulgaria	7	Myanmar	8	China	6	USA	7
Morocco	6	Peru	8	Turkey	6	Vietnam	7
USSR	6	S. Korea	7	Egypt	5	Egypt	6
Myanmar	5	India	6	Israel	5	China	5
S. Korea	5	Indonesia	6	Mexico	5	Colombia	5
Peru	4	Nigeria	6	Myanmar	5	Iran	5
Greece	4	S.Africa	6	Peru	5	Mexico	5
Guatemala	4	Turkey	6	Algeria	4	Uzbekistan	5
Ethiopia	4	Morocco	5	Brazil	4	Eq.Guinea	4
Cuba	4	Cuba	5	Colombia	4	Eritrea	4
Czechslovakia	4	Kenya	4	Tunisia	4	Israel	4
		Kuwait	4	Uzbekistan	4	Nepal	4
		Pakistan	4			Sudan	4
		Philippines	4			Turkey	4
		Syria	4			Turkmenistan	4
		Tunisia	4				

Table 4. Worse Offenders by Totals

Country	No. Periods Cited	Total no. citations	Annual Average No. Citations Over 20 years	Average No. Citations per Period
Syria	4	33	1.65	8.25
China	4	29	1.45	7.25
Myanmar	4	26	1.50	6.50
S.Korea	3	19	0.95	6.30
Peru	3	17	0.85	5.60
Turkey	3	16	0.80	5.30
Colombia	2	9	0.45	4.50
Cuba	2	9	0.45	4.50
Czech Rep.	1	4	0.20	4.00
Sri Lanka	1	9	0.25	9.00
India	1	6	0.30	6.00
Indonesia	1	6	0.30	6.00
Nigeria	1	6	0.30	6.00
S.Africa	1	6	0.30	6.00

the USSR, have experienced a prevalence of human rights abuses in excess of the size of their populations.

Considering all three maps, the only areas where there seems to be long term, systematic improvements in fostering and maintaining human rights are in Eastern Europe and East Asia. In Eastern Europe it appears that there was sufficient residual liberal democratic experience from the interwar years, so that when the Soviet empire disintegrated, respect for human rights could revert to what it was in the pre-Soviet past. As for East Asia, the Republic of China (Taiwan) and the Republic of Korea (South Korea) have both been cited as examples of countries that improved their human rights records, presumably because of the impact of globalization.¹⁴ However, there is a debate regarding how both countries achieved their improvement. Was Taiwan's a function of the broader political initiatives of democratization, liberalization, and Taiwanization fostered by Chiang Ching-kuo or was it a function of judicial activism?¹⁵ The case for improved human rights records

14. MARC J. COHEN, *TAIWAN AT THE CROSSROADS: HUMAN RIGHTS, POLITICAL DEVELOPMENT AND SOCIAL CHANGES ON THE BEAUTIFUL ISLAND* (1991); Chen Kuide, *Two Historical Turning Points: The Seoul and Beijing Olympics*, 3 CHINA RTS. FORUM 36 (2007); Rhoda A. Howard-Hassmann, *The Second Great Transformation: Human Rights Leapfrogging in the Era of Globalization*, 27 HUM. RTS. Q. 1, 39 (2005).
15. J. Bruce Jacobs, *Taiwan and South Korea: Comparing East Asia's Two "Third Wave" Democracies*, 43 ISSUES & STUD. 227, 239 (2007); Frederick Chao-Chun Lin, *The Implementation of Human Rights in Taiwan*, in HUMAN RIGHTS IN ASIA: A COMPARATIVE LEGAL STUDY OF TWELVE ASIAN JURISDICTIONS, FRANCE AND THE UNITED STATES 298, 301–02 (Randall Peerenboom,

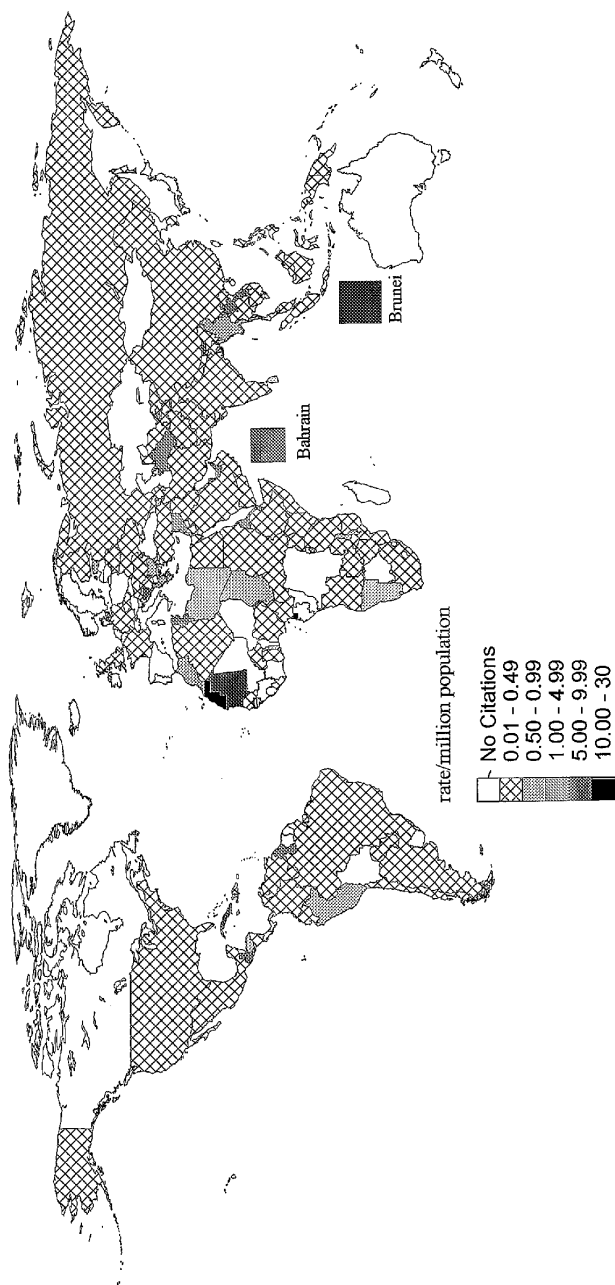


Figure 3. Human Rights Citations, 1986–2006, rates per million

Table 5. Worst Human Rights Offenders by Rates/million residents							
Total 20 year period		Sept. 1986–Aug. 1991		Sept. 1991–Aug. 1996		Sept. 1996–Aug. 2001	
Country	Rate	Country	Rate	Country	Rate	Country	Rate
Equatorial Guinea	30.00	Brunei	10.00	Equatorial Guinea	7.50	St. Lucia	10.00
Brunei	13.33	Equatorial Guinea	6.60	Bahrain	4.00	Equatorial Guinea	7.75
St. Lucia	10.00	Bahrain	2.00	Cyprus	2.80	Bahrain	3.33
Bahrain	8.30	Gambia	1.11	Bahrain	2.50	Brunei	3.33
Kuwait	4.44	Kuwait	2.35	Kuwait	1.37		
Bhutan	3.75	Gambia	1.11	Guyana	1.42		
Cyprus	2.86	Bhutan	1.25				
Laos	2.40						
						Qatar	6.67
						Equatorial Guinea	8.00

Table 6. Countries with Highest Abuse Rates/million population

Country	Rate
El Salvador	1.01
Lebanon	1.05
UAE	1.05
Turkmenistan	1.09
Eritrea	1.11
Cuba	1.18
Guatemala	1.21
Tunisia	1.30
Qatar	1.42
Guyana	1.43
Djibouti	1.67
Bosnia-Herzegovina	1.94
Syria	2.10
Mauritania	2.17
Israel	2.24
Cyprus	2.86
Kuwait	4.44
Bahrain	8.30
Western Sahara	10.0
Brunei	13.33
Equitorial Guinea	30.00

in the Republic of Korea is somewhat more problematic. Due to its presidential system of government, the country is still cited for human rights abuses, especially in regard to the handling of political dissidents and labor rights.¹⁶

VI. TYPES OF ABUSES

In addition to allowing for the exploration of the different ways to describe the distribution of human rights abuses, the database I worked with con-

Carole J. Petersen & Albert H.Y. Chen eds., 2006); Hung-mao Tien, *Transformation of an Authoritarian Party State: Taiwan's Development Experiences*, in *POLITICAL CHANGE IN TAIWAN* 33, 35 (Tun-jen Cheng & Stephan Haggard eds., 1992). In contrast ADAM PRZEWORSKI, ET AL., *DEMOCRACY AND DEVELOPMENT: POLITICAL INSTITUTIONS AND WELL-BEING IN THE WORLD, 1950–1990*, at 97–98 (2000) see the shift to democracy purely in geopolitical terms: the ruling dictatorship was trying to mobilize international support against threats from the People's Republic of China and felt it would garner more sympathy if its government was democratic.

16. DIAMOND, *supra* note 13, at 198; Hee-Min Kim, *A Theory of Government Driven Democracy: The Case of Korea*, 156 *WORLD AFF.* 133 (1994); Hahm Chaihark, *Human Rights in Korea*, in *HUMAN RIGHTS IN ASIA*, *supra* note 15, at 265, 286–87. For the period 1989–2001 and 2006 and 2007, Freedom Writers were annually asked to write to the government of the Republic of Korea regarding its treatment of prisoners of conscience.

Table 7. Types of Abuses

<i>Name</i>	<i>Frequency</i>
conscientious objectors	4
contacts	1
death in prison	9
denial of asylum	3
deportation or forced migration	8
detention without charge or trial	71
disappearances	78
extrajudicial killings	23
human rights workers targeted	20
ill treatment	17
imposition of death penalty	12
institutionalized in a mental hospital	2
political killings	12
poor security	3
prisoner of conscience	391
racial attacks	2
sexual assaults/honor killings	10
threats	35
torture	38
unfair trial	21

tained information regarding the types of abuses practiced in each country. Amnesty International has identified twenty categories (Table 7). Note that there is no relationship between the number and types of abuses in a given country because often a country is cited simultaneously for more than one type of abuse. Two questions can be answered from these data. First, for each country what is the extent of abuse types? Unfortunately, with a few exceptions most countries engage in multiple forms of abuse (Figure 4). The most egregious examples are Turkey (seven types) and Mexico (eight types). Second, are there regional preferences for certain combinations of abuse (Table 8)? For example, torture appears to be a special problem in Latin America, where it was believed that communist subversion was being carried out and had to be stopped at all costs. Although torture was known before the rise of authoritarian governments in the 1970s, in the 1980s it was more broadly applied to political prisoners and to social classes not accustomed to torture.¹⁷ The most universal citation is for detaining individuals as prisoners

17. EDWARD CLEARY, *MOBILIZING FOR HUMAN RIGHTS IN LATIN AMERICA* 111–13 (2007); Larry Diamond, *Democracy in Latin America: Degrees, Illusions, and Directions for Consolidation*, in *BEYOND SOVEREIGNTY: COLLECTIVELY DEFENDING DEMOCRACY IN THE AMERICAS* 52, 71–72 (Tom Farer ed., 1996).

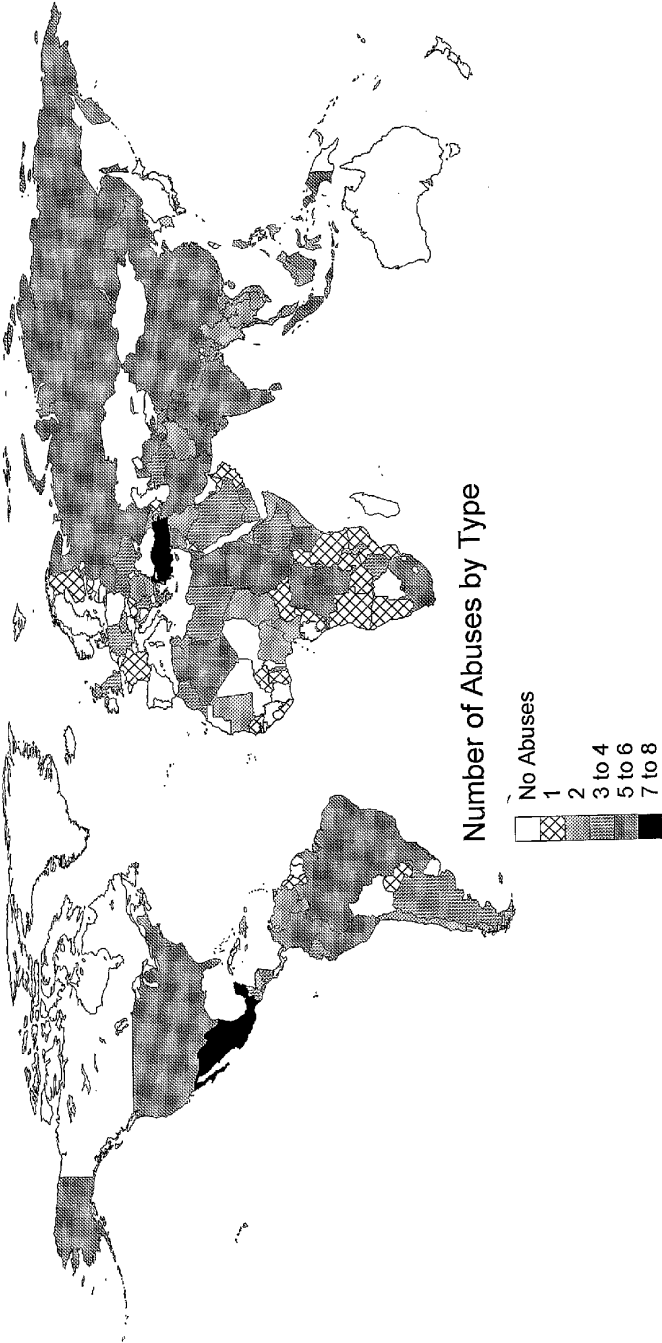


Figure 4. Extent of Abuse

Table 8. Most common forms of human rights abuse by region

<i>Region</i>	<i>Types of abuse</i>
Africa	detention, torture, unfair trials
Asia, south	detention, disappearances, sexual assaults, torture
Caribbean	disappearances
Europe	conscientious objection
Europe, south	disappearances, ill treatment
Latin America	disappearances, extra-judicial killings, human rights worker involvement, political killings, threats
Middle East and North Africa	death penalty, detention, disappearances, ill treatment, sexual assaults, torture, unfair trials
North America	deportation

of conscience, although this category may reflect an early, narrow concern of Amnesty International as it launched the Freedom Writers initiatives.¹⁸

In addition to regional preferences it is important to keep in mind that abuses changed over time in different areas. For example, in Africa despots would use the death penalty and genocide as a means of abuse. However, when civil wars broke out or during debt crises, the very existence of civil strife and the breakdown of states led to refugee abuse and rape as weapons of war and abuse. Even the HIV/AIDS epidemic generated discrimination and abuse.¹⁹ In the Former Soviet Union abuse changed after 1991 from terror and torture to official regulation and discrimination.²⁰

VII. WHAT WENT WRONG?

It is clear from the description and analysis of the maps and the supporting statistics in Tables 1–8 that the initial speculation that there should have been changes in the spatial patterns of human rights abuses showing an improvement in human rights conditions was incorrect. The question that needs answering then is what are the reasons that the initial assumption/hypothesis was incorrect? The broad literature on human rights suggests the following as possible explanations for the lack of progress in reducing human rights abuses:

18. Richards, *supra* note 3, at 25 (points out that in 2001 AI expanded its core mission to include economic, cultural, and social rights).
19. GEORGE WILLIAM MUGAWANYA, *HUMAN RIGHTS IN AFRICA: ENHANCING HUMAN RIGHTS THROUGH THE AFRICAN REGIONAL HUMAN RIGHTS SYSTEM* 54 (2003).
20. Constantine V. Pleshakov, *Human Rights in Russia: The Dragon is not Defeated*, in *HUMAN RIGHTS AND INTERNATIONAL RELATIONS IN THE ASIA-PACIFIC REGION* 125, 130 (James H.T. Tang ed., 1995).

- The original articulation of the virtuous cycle of democracy-development-respect for human rights was flawed because it assumed an overly simplistic definition of democracy;
- The emergence of authoritarian capitalism;
- The spread of neoliberalism;
- Globalization and the demands of efficiency;
- The chaos resulting from the efforts at democratizing in Iraq, the Palestinian Authority, and Russia cast doubts on the ability of democracy to ensure human rights;
- Many countries, cultures, and political leaders harbor a sense of exceptionalism, which leads them to feel they are not obligated to adhere to human rights conventions and treaties, even when they have ratified them;
- Western democracies' hypocrisy, inconsistencies, and failure to cite countries for human rights abuses;
- Hypocrisy on the part of countries that sign human rights conventions, and then persist in abusing terms of the conventions, frequently after the convention has been ratified;
- The persistence of corruption, instability, and institutional constraints in newly established democracies;
- The use of irregular or paramilitary forces in civil conflicts.

While some of these possible explanations may seem self-evident and clear, others require some explication. Over the years political scientists and sociologists have identified and refined a virtuous cycle linking economic development, the establishment of democracy, the rise of civil society, and respect for human rights. This cycle is often referred to as modernization theory; in its most recent iteration it has been labeled the Washington Consensus.²¹

Despite historical and statistical support for this theory,²² it has been contested, revised, extended, buried, and resuscitated so much that nei-

21 Charles Gore, *The Rise and Fall of the Washington Consensus as a Paradigm for Developing Countries*, 28 *WORLD DEV.* 789 (2000); Michael Mandelbaum, *Peace, Democracy, and Free Markets in the Twenty-First Century*, in *INVESTING UNDER FIRE: WINNING STRATEGIES FROM THE MASTERS FOR BULLS, BEARS, AND THE BEWILDERED* 307 (Alan B. Ackerman ed., 2003); John Williamson, *Democracy and the "Washington Consensus,"* 21 *WORLD DEV.* 1329 (2003).

22. For example, for historical support see DIAMOND, *supra* note 13, at 4, 15, 78, 116–25; MILTON FRIEDMAN, WITH ROSE D. FRIEDMAN, *CAPITALISM AND FREEDOM* 9–10 (1962); Seymour Martin Lipset, Kyoung- Ryung Seong & John Charles Torres, *A Comparative Analysis of the Social Requisites of Democracy*, 45 *INT'L SOC. SCI. J.* 155 (1993). For statistical support see Gerald J. Blasi & David Louis Cingranelli, *Do Constitutions and Institutions Help Protect Human Rights?*, in *HUMAN RIGHTS AND DEVELOPING COUNTRIES*, VOL. 4, at 223 (David

ther the theory nor the facts supporting it are universally accepted.²³ The validity of the theory has been challenged for several reasons. First, the term “democracy” connotes a broad range of electoral and governmental arrangements, and requires—in addition to open, free, and periodic elections where opposition parties also have a reasonable chance to win—the rule of law, an independent judiciary, accountability, and a civil society.²⁴ Second, historically many models of economic development have led to democracy.²⁵ Third, although the theory assumes a link between capitalism and democracy, this is not necessarily the case.²⁶ Fourth, it is not clear that the goal of economic development is necessarily democracy.²⁷ Fifth, modernization theory was formulated without substantial direct reference to the experiences of the non-Western political or economic systems.²⁸ Finally, economic development can also lead to dictatorships. Despots and dictators can get elected by minimally democratic means, and though their policies and actions can lead to further economic development, they can also disrupt or short-circuit the modernization cycle to the point where human rights are violated, not respected.

This latter observation has led to the enunciation of an alternative to modernization theory: *authoritarian development*, or economic development without human rights, where prosperity is valued over freedom.²⁹ As with the Asian Values debate regarding human rights, discussed below, the origins of the theory of authoritarian development have been traced to Lee Kwan Yew.³⁰ Although this theory has been criticized as being based on post hoc reasoning³¹ and its exponents cannot point to even a shred of evidence

Louis Cingranelli ed., 1996); Valerie Bunce, *Comparative Democratization: Big and Bounded Generalizations*, 33 COMP. POL. STUD. 703 (2000); Phillips Cutwright, *National Political Development: Measurement and Analysis*, 28 AM. SOC. REV. 253 (1963).

23. PRZEWORSKI, ET AL., *supra* note 15, at 78–79.
24. DAVID BEETHAM, *DEMOCRACY AND HUMAN RIGHTS* 1, 13 (1999); Blasi & Cingrelli, *supra* note 22, at 223–24; DON EBERLY, *THE RISE OF GLOBAL CIVIL SOCIETY: BUILDING COMMUNITIES AND NATIONS FROM THE BOTTOM UP* 116–17 (2008).
25. Aung San Suu Kyi, *Freedom, Development, and Human Worth*, 6 J. DEMOC. 11, 17 (1995); Adam Przeworski & Fernando Limongi, *Modernization: Theory and Facts*, 49 WORLD POL. 117 (1997).
26. Gören Therborn, *The Rule of Capital and the Rise of Democracy*, 103 NEW LEFT REV. 17, 20, 28, 34 (1977).
27. Larry Diamond, *Economic Development and Democracy Reconsidered*, in REEXAMINING DEMOCRACY: ESSAYS IN HONOR OF SEYMOUR MARTIN LIPSET 93, 114 (Gary Marks & Larry Diamond eds., 1992).
28. Donal Cruise O'Brien, *Modernization, Order, and the Erosion of a Democratic Ideal. American Political Science, 1960–70*, in DEVELOPMENT THEORY: FOUR CRITICAL STUDIES 49, 57 (David Lehmann ed., 1979).
29. John Frankenstein, *Business vs. Politics*, 160 FAR E. ECON. REV., 10 July 1997, at 38, 46.
30. Amartya Sen, *Human Rights and Economic Achievements*, in THE EAST ASIAN CHALLENGE FOR HUMAN RIGHTS 88, 92 (Joanne R. Bauer & Daniel A. Bell eds., 1999).
31. *Id.*

that democracy must be sacrificed to foster development,³² it is attractive to many third world leaders. In addition to the political stability and economic efficiency the theory offers,³³ its attractiveness is based on the ability it gives politicians to appeal to or give in to voters' fears, hatreds, and prejudices in the face of economic crises³⁴ and to thereby suppress dissent.

And as with modernization theory, authoritarian development has evolved and been given an alternative name. In this iteration, termed the Beijing Consensus, the emphasis has shifted from development without human rights to the importance of educationally driven innovation, change led by knowledge, the value of experimentation even if failure results, and the importance of sustainability and equitable growth.³⁵ Significantly, the Chinese government appears to be very reluctant to claim the theory. They are reluctant to alienate the United States, and if the theory fails it would undermine the legitimacy of the Chinese Communist party with the publicity surrounding the negative aspects of the applied theory—environmental disruption, rampant corruption, and growing income disparities.³⁶ Nevertheless the model is attractive to leaders of underdeveloped countries because it permits them to reject the Western model of development, allows for localization where indigenous growth can be fostered, offers the promise of security, and of course exculpates and exonerates them from respecting human rights.³⁷

Neoliberalism is an economic theory associated with the writings of the Austrian political philosopher Friedrich von Hayek and championed by Milton Friedman. The prestige and credibility of the theory was enhanced when both men won the Nobel Prize in economics (Hayek in 1974 and Friedman in 1976).³⁸ The tenets of the theory assume that human well-being can best be advanced by liberating individual entrepreneurial freedoms within an institutional framework emphasizing strong private property rights, free

32. *Id.* at 91; PRZEWORSKI, ET AL., *supra* note 15, at 178, 271.

33. Kevin Y.L. Tan, *Economic Development, Legal Reform, and Rights in Singapore and Taiwan*, in *THE EAST ASIAN CHALLENGE*, *supra* note 30, at 264, 271.

34. WILLIAM EASTERLY, *THE WHITE MAN'S BURDEN: WHY THE WEST'S EFFORTS TO AID THE REST HAVE DONE SO MUCH ILL AND SO LITTLE GOOD* 127–28 (2006); Tony Evans, *If Democracy, Then Human Rights?*, 22 *THIRD WORLD Q.* 623, 632 (2004); Albert O. Hirschman, *The Turn to Authoritarianism in Latin America and the Search for Its Economic Determinants*, in *THE NEW AUTHORITARIANISM IN LATIN AMERICA* 61, 61–62, 71 (David Collier ed., 1979); STEPHEN J. KING, *THE NEW AUTHORITARIANISM IN THE MIDDLE EAST AND NORTH AFRICA* 23 (2009); *DEMOCRACY AND CIVIL SOCIETY IN ASIA*, VOL. 1: *GLOBALIZATION, DEMOCRACY AND CIVIL SOCIETY IN ASIA* 3 (Fahimul Quadir & Jayant Lele eds., (2004).

35. JOSHUA COOPER RAMO, *THE BEIJING CONSENSUS: NOTES ON THE NEW PHYSICS OF CHINESE POWER* 11–12, 15, 18, 20–21 (2004).

36. *Id.* at 27–28; *The China Model: The Beijing Consensus is to Keep Quiet*, 395 *ECONOMIST* 41–42 (8 May 2010).

37. RAMO, *supra* note 35, at 27–28.

38. DAVID HARVEY, *A BRIEF HISTORY OF NEOLIBERALISM* 20–22 (2007).

markets, and free trade. As such, the role of the state is to guarantee the quality and integrity of money and establish the military, defense, police, and legal functions required to secure private property rights and to guarantee, by force if necessary, the proper functioning of markets. If markets do not exist, for example for pollution credits or carbon trading, it is the obligation of the state to create them. Once created, these markets should not be interfered with by regulators second-guessing markets. Government should get out of the business of supplying services, all areas of social provision should be privatized, and all sectors of the economy should be deregulated. The proper functioning of the resulting system relies on personal responsibility.³⁹

The adoption of neoliberalism by authoritarian governments—frequently as part of IMF “adjustment” policies⁴⁰—can, however, be associated with gross violations of human rights, increasing income distribution disparities, and high, short-term social costs, especially for migrants.⁴¹ Thus, one can point to another of the many paradoxes of human rights abuses and the process of democratization: democracy allows for an easier acceptance of neoliberalism,⁴² so neoliberal ideology presents itself as pro-democracy and pro-human rights.⁴³ At the same time, however, it can be characterized as remote from human rights concerns.⁴⁴ The case can also be made that since neoliberalism became the preferred framework for restructuring global capitalism, it has led to the emergence of authoritarianism despite neoliberal beliefs that authoritarianism hinders economic development.⁴⁵ Furthermore, the neoliberal emphasis on reducing the size and scope of state agencies devoted to meeting social needs has the potential to weaken the very groups that seek to implement human rights.⁴⁶

There is no consensus about the impact of globalization on human rights. Virtually every social science has its own definition of globalization

39. *Id.* at 2–3.

40. EDWARD L. CLEARY, *THE STRUGGLE FOR HUMAN RIGHTS IN LATIN AMERICA* 4 (1997); Guillermo O'Donnell, *Tension Between the Bureaucratic Authoritarian State and the Question of Democracy*, in *THE NEW AUTHORITARIANISM IN LATIN AMERICA* 305–06 (David Collier ed., 1979).

41. NAOMI KLEIN, *THE SHOCK DOCTRINE: THE RISE OF DISASTER CAPITALISM* (2007); XIMENA DE LA BARRA & RICHARD A. DELLO BUONO, *LATIN AMERICA AND THE NEOLIBERAL DEBACLE: ANOTHER REGION IS POSSIBLE* 27, 34 (2009); Minxin Pei, *The Puzzle of East Asian Exceptionalism*, 5 J. DEMOC. 90, 93 (1994).

42. William K. Tabb, *Globalization, Economic Restructuring and the Democratic Implications*, in *DEMOCRACY AND CIVIL SOCIETY IN ASIA: VOL. 1*, *supra* note 34, at 56, 75.

43. Simon Springer, *Renewed Authoritarianism in Southeast Asia: Undermining Democracy Through Neoliberal Reforms*, 50 ASIA PACIFIC VIEWPOINT 271 (2009).

44. RICHARD A. FALK, *PREDATORY GLOBALIZATION: A CRITIQUE* 174 (1999); PHILIP J. ELDRIDGE, *THE POLITICS OF HUMAN RIGHTS IN SOUTHEAST ASIA* 25 (2002).

45. DENNIS C. CANTERBURY, *NEOLIBERAL DEMOCRATIZATION AND NEW AUTHORITARIANISM* 2–3, 173 (2005).

46. CLAUDIO A. FUENTES, *CONTESTING THE IRON FIST: ADVOCACY NETWORKS AND POLICE VIOLENCE IN DEMOCRATIC ARGENTINA AND CHILE* 27 (2005).

and therefore a preferred way of measuring its impact.⁴⁷ Thus, any debate regarding any link between globalization and human rights abuses suffers from conceptual, methodological, and measurement problems and results in variable and fragile conclusions.⁴⁸ Moreover, it is not clear how the contemporary globalization differs from previous ones.⁴⁹

Nevertheless there have been attempts to specify as precisely as possible how globalization *might* be affecting human rights. At one extreme, globalization with its emphasis and reliance on rapid communications⁵⁰ can speed up diffusion of the ideas of human rights, make it easier to expose human rights infractions, and conduct global consumer campaigns against abuses such as abusive labor practices. By eroding geographical remoteness,⁵¹ globalization can theoretically expedite the creation of an international civil society. At the other extreme pessimists argue that globalization has the potential for either mitigating or exacerbating human rights conditions.⁵²

Optimists claim that globalization furthers the cause of human rights because it has:

- contributed to the rise of a middle class that favors human rights;⁵³
- extended the domain of democracy and disrupted tyrannical and authoritarian governments via the creation of a global citizenry that is comfortable with cosmopolitanism;⁵⁴
- improved economic and labor rights via increased foreign direct investment and portfolio investments by companies either interested in or sensitive to human rights issues;⁵⁵

47. JAN NEDERVEEN PIETERSE, GLOBALIZATION AND CULTURE, *GLOBAL MÉLANGE* 7–21 (2004); Keri Iyall Smith, *Response to Rodríguez: A “Long Walk to Freedom” and Democracy*, 83 *SOC. FORCES* 413, 413–14 (2004).

48. FUENTES, *supra* note 46, at 27; Emilie Haffner-Burton, *External Pressures and Human Rights: The State of the Globalization Debate*, Paper Presented at the 98th Annual Meeting of the American Political Science Association, Boston 34 (2002); Howard-Hassmann, *supra* note 14, at 40.

49. GEOFFREY C. GUNN, *FIRST GLOBALIZATION: THE EURASIAN EXCHANGE, 1500–1800* (2003).

50. CAROL C. GOULD, GLOBALIZING DEMOCRACY AND HUMAN RIGHTS 189 (2004); Havidán Rodríguez, *A “Long Walk to Freedom” and Democracy: Human Rights, Globalization, and Social Justice*, 83 *SOC. FORCES* 402 (2004).

51. Howard-Hassmann, *supra* note 14, at 35–36; Morton Winston, *Human Rights and International Political Economy in Third World Nations: Multinational Corporations, Foreign Aid, and Repression*, Book Rev., WILLIAM H. MEYER, *HUMAN RIGHTS AND INTERNATIONAL POLITICAL ECONOMY IN THIRD WORLD NATIONS: MULTINATIONAL CORPORATIONS, FOREIGN AID, AND REPRESSION*, 21 *HUM. RTS. Q.* 824 (1999).

52. Rodríguez, *supra* note 50, at 406.

53. FUENTES, *supra* note 46, at 27.

54. GOULD, *supra* note 50, at 189–91; FALK, *supra* note 44, at 199.

55. Robert McCorquodale with Richard Fairbrother, *Globalization and Human Rights*, 21 *HUM. RTS. Q.* 735, 743 (1999); David L. Richards, Ronald D. Gelleny & David H. Sacko, *Money with a Mean Streak? Foreign Economic Penetration and Government Respect for Human Rights in Developing Countries*, 45 *INT’L STUD. Q.* 219, 221, 236 (2001). ANTHONY WOODIWISS, *GLOBALISATION, HUMAN RIGHTS, AND LABOUR LAW IN PACIFIC ASIA* 262 (1998); William H. Meyer, *Human Rights and MNCs: Theory v. Quantitative Analysis*, 18 *HUM. RTS. Q.* 368 (1996).

- led to greater accountability, transparency, and social responsibility;⁵⁶
- opened new career paths and changed attitudes about gender roles;⁵⁷ and
- established human rights as a central universal symbol.⁵⁸

For their part, pessimists see globalization as either having the potential for, or a history of, delaying the growth of democracy and harming human rights.⁵⁹ Politically, they fear that globalization will expand the hegemony of the West, weaken state sovereignty and lead to failed states,⁶⁰ increase cross-border corruption and smuggling,⁶¹ and result in an increase in terrorism.⁶² Economically, there is concern that growth will weaken,⁶³ unemployment will increase in part due to outsourcing,⁶⁴ economic inequality will worsen,⁶⁵ the size and influence of labor unions will diminish,⁶⁶ piracy of intellectual property rights will expand,⁶⁷ and the imposition of financial adjustment plans will lead to economic stagnation and even collapse.⁶⁸

Globalization may also have a negative impact on social and cultural affairs. Pessimists worry about the possible breakdown of indigenous societies, increases in crime, especially drug trade and human trafficking, a growth in police violence, the dismemberment of the welfare state, and a rise in illegal migration and refugee movements.⁶⁹ Finally, they are concerned that globalization, with its emphasis on efficiency and profits, will lead to acceleration of environmental degradation.⁷⁰

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56. G. Shabbir Cheema, *Inclusive Governance and Democracy in Asia: Transitions and Challenges*, in GLOBALIZATION AND CHANGE IN ASIA 151, 153 (Dennis A. Rondinelli & John M. Heffron eds., 2007); A. Belden Fields & Wolf-Dieter Narr, *Human Rights as a Holistic Concept*, 14 HUM. RTS. Q. 1 (1992).
 57. Mahmood Monshipouri & Reza Montameni, *Globalization, Scared Beliefs, and Defiance: Is Human Rights Discourse Relevant in the Muslim World?*, 42 J. CHURCH & STATE 723 (2000).
 58. WARWICK E. MURRAY, GEOGRAPHIES OF GLOBALIZATION 71 (2006).
 59. Cheema, *supra* note 56, at 153; Evans, *supra* note 34, at 627; Howard-Hassmann, *supra* note 14, at 27; JAN AART SCHOLTE, GLOBALIZATION, A CRITICAL INTRODUCTION (2d ed. 2005).
 60. Cheema, *supra* note 56, at 153; Monshipouri & Montameni, *supra* note 57, at 710, 715, 717–18; Tahb, *supra* note 42, at 59.
 61. Cheema, *supra* note 56, at 153; Mary W. Robinson, *The Fifth Annual International Grotius Lecture: Shaping Globalization: The Role of Human Rights*, 19 AM. UNIV. INT'L L. REV. 4 (2003).
 62. Cheema, *supra* note 56, at 153.
 63. Joshua Kurlantzick, *Monster's Ball: Global Authoritarianism on the March*, 239 NEW REPUBLIC, 3 Oct. 2008, at 27, 30.
 64. Nelson Lichtenstein, *The Rights Revolution*, 12 NEW LABOR FORUM 61 (2003).
 65. Cheema, *supra* note 56, at 153; Monshipouri & Montameni, *supra* note 57, at 710.
 66. Lichtenstein, *supra* note 64, at 61.
 67. Cheema, *supra* note 56, at 153.
 68. Michael E. Goodhart, *Origins and Universality in the Human Rights Debate: Cultural Essentialism and the Challenge of Globalization*, 25 HUM. RTS. Q. 935 (2003).
 69. Cheema, *supra* note 56, at 153.
 70. *Id.*; Goodhart, *supra* note 68, at 935.

Exceptionalism was described by Freud⁷¹ as a condition whereby an individual feels that he or she may claim an exemption from the conventional constraints of society because he or she has either suffered enough or has been subjected to extenuating circumstances. Just as individuals can make the claim of exceptionalism to avoid respecting human rights,⁷² so too can countries. For example, the United States is widely seen as a country that makes the exceptionalist claim that its 200 years of history entitles it to its own foreign policies and to forge its own approach to ratifying and implementing human rights.⁷³ If the United States can make such a claim other countries and regions can do the same,⁷⁴ and they can use the same variety of rationales to make their exceptionalist claim.⁷⁵ The same reasoning can also apply to cultures—for example, Asian or Islamic values.

Starting in the 1980s and accelerating as the Cold War came to an end, Asian and Islamic political leaders and public intellectuals began calling for an alternative to Western human rights as embodied in the Universal Declaration of Human rights (UDHR), which they felt was fundamentally flawed. Both Asian and Islamic perspectives point to the Western emphasis on individual rights and freedoms to the detriment of family and community responsibilities and values.⁷⁶ They also note the emphasis on political and civil rights rather than economic and social ones.⁷⁷ Additional Islamic con-

71. Sigmund Freud, *The Exceptions*, in *THE STANDARD EDITION OF THE COMPLETE PSYCHOLOGICAL WORKS OF SIGMUND FREUD*, VOL.14, at 311, 312–13 (James Strachey ed., 1957).

72. JUSTIN A. FRANK, *BUSH ON THE COUCH: INSIDE THE MIND OF THE PRESIDENT* (2004).

73. ANDREW J. BACEVICH, *THE LIMITS OF POWER: THE END OF AMERICAN EXCEPTIONALISM* (2008); Holly Burkhalter & Juan Mendez, *Rights, Wrongs, and U.S. Foreign Policy*, *LEGAL TIMES*, 19 July 1993, at 27–28; GODFREY HODGSON, *THE MYTH OF AMERICAN EXCEPTIONALISM* (2009); Michael Ignatieff, *Introduction: American Exceptionalism and Human Rights*, in *AMERICAN EXCEPTIONALISM AND HUMAN RIGHTS 1* (Michael Ignatieff ed., 2005); Michael Ignatieff, *No Exceptions? The United States Pick-and-Choose Approach to Human Rights*, in *HUMAN RIGHTS IN THE WORLD COMMUNITY: ISSUES AND ACTION* 383 (3d ed. Richard Pierre Claude & Burns H. Weston eds., 2006); SEYMOUR MARTIN LIPSET, *AMERICAN EXCEPTIONALISM: A DOUBLE EDGED SWORD* (1996).

74. JANE MAYER, *THE DARK SIDE: THE INSIDE STORY OF HOW THE WAR ON TERROR TURNED INTO A WAR ON AMERICAN IDEALS* 332 (2008), argues that corrupt and repressive states including Egypt, Sudan, and Zimbabwe have all justified their own violation of human rights by citing America's examples of prisoner abuse under the Geneva Convention. For East Asia see Pei, *supra* note 41. For China see Michael J. Sullivan, *Developmentalism and China's Human Rights Policy*, in *DEBATING HUMAN RIGHTS: CRITICAL ESSAYS FROM THE UNITED STATES AND ASIA* 120 (Peter Van Ness ed., 1999).

75. Pei, *supra* note 41.

76. ELDRIDGE, *supra* note 44, at 33; Frahat Haq, *Jihad over Human Rights: Human Rights as Jihad*, in *NEGOTIATING CULTURE AND HUMAN RIGHTS* 242, 253 (Lynda S. Bell, Andrew J. Nathan & Ilan Pelegm eds., 2000).

77. Barbara Crossette, *The Battle for Human Rights: A Clash of Visions Between North and South*, 287 *NATION*, 22 Dec. 2008, at 20, 21; James Mouangue Kobila, *Comparative Practice on Human Rights: North-South*, in *THE GLOBALIZATION OF HUMAN RIGHTS* 89, 101 (Jean-Marc Coicaud, Michael W. Doyle & Anne-Marie Gardener eds., 2003), points out a paradox in this position: while the developed (Northern) world is said to favor civil and political rights over the preference of the underdeveloped (Southern) world, in fact

cerns over the source of the UDHR were voiced: it was after all a document created by human reason and thus could not replace the rights embedded in Islamic tradition, which were derived from the word of God.⁷⁸ By far the most important landmark in criticizing the UHDR was found in the Bangkok Declaration, which was adopted by Ministers of Asian States in 1993 in the lead-up to the World Conference on Human Rights. Although the Ministers reaffirmed their countries' commitment to the principles of the United Nations Charter and the UDHR, they also emphasized their concerns regarding the interdependence and indivisibility of human rights, the need for universality and objectivity, the non-selectivity of human rights, and the need to respect the principles of sovereignty and non-interference in the affairs of other states. They also expressed their desire for greater emphasis on economic, social, and cultural rights over civil and political ones.

Such claims or course do not go unchallenged in the West or in Asian and Islamic societies. One immediate concern is: Who can speak for all of Asia and all of Islam?⁷⁹ The Asian values debate seems to draw almost exclusively on Confucian teachings with little reference to Buddhist, Hindu, Taoist, or any other Asian traditions.⁸⁰ As for Islam, since there is no central religious authority, different legal traditions developed.⁸¹ Thus it cannot be claimed that Islam is monolithic.⁸² Given these concerns it should not be a

the north has respected both sets of rights while the south has violated civil and political rights while ignoring economic and social ones. However, the distinction between the two sets of rights is also reflected in historical contrast of freedoms preferred by the English and French; Rafael La Porta, Florencio López-de-Silanes, Cristian Pop-Eleches & Andrei Shleifer, *The Guarantees of Freedom*, National Bureau of Economic Research, Working Papers 8759, at 1 (2002).

78. Haq, *supra* note 76, at 242; Seyyed Hossein Nasr, *The Concept and Reality of Freedom in Islam and Islamic Civilization*, in *THE PHILOSOPHY OF HUMAN RIGHTS: INTERNATIONAL PERSPECTIVES* 95, 97 (Alan S. Rosenbaum ed., 1980).
79. Yash Ghai, *Asian Perspectives on Human Rights*, in *HUMAN RIGHTS AND INTERNATIONAL RELATIONS*, *supra* note 20, at 54; Youngindra Khushalami, *Human Rights in Asia and Africa*, 4 *HUM. RTS. L. J.* 403, 405–06 (1983); Anthony Milner, *What Happened to "Asian Values?"*, in *TOWARDS RECOVERY IN PACIFIC ASIA* 56 (Gerald Segal & David S.G. Goodman eds., 2000), argues that there is little evidence of a coherent pan-Asian value system.
80. For Hinduism see Jack Donnally, *Traditional Values and Universal Human Rights: Caste in India*, in *ASIAN PERSPECTIVES ON HUMAN RIGHTS* 55 (Claude Welsh, Jr., & Virginia A. Leary eds., 1990); Kana Mitra, *Human Rights in Hinduism*, 19 *J. ECUMENICAL STUD.* 77 (1982); for Buddhism see Kenneth K. Inada, *A Buddhist Response to the Nature of Human Rights*, in *ASIAN PERSPECTIVES ON HUMAN RIGHTS*, *supra*, at 91; Craig K. Ihara, *Why There are no Rights in Buddhism: A Reply to Damien Keown*, in *BUDDHISM AND HUMAN RIGHTS* 43 (Damien V. Keown, Charles S. Prebish & Wayane R. Husted eds., 1998); Damien V. Keown, *Are There Human Rights in Buddhism*, in *BUDDHISM AND HUMAN RIGHTS*, *supra*, at 15; Romila Thapar, *The Hindu and Buddhist Traditions*, XVIII *INT'L SOC. SCI. J.* 31 (1966) (deals with both religions).
81. ALBERT HOURANI, *A HISTORY OF THE ARAB PEOPLES* 158–62 (1991).
82. Donna Artz, *Treatment of Religious Dissidents Under Classical and Contemporary Islamic Law*, in *RELIGIOUS HUMAN RIGHTS IN GLOBAL PERSPECTIVES: RELIGIOUS PERSPECTIVES* 399, 451 (John Witte, Jr. & Johan D. van der Vyver eds., 1996).

surprise that attempts are made to ascertain what the true motivations are for making exceptionalist claims.

The Asian claim seem to revolve around four issues: a desire to push back against the West for past grievances and exploitation;⁸³ fear of being exposed to further exploitation due to globalization and neoliberalism;⁸⁴ belief that the West is in decline and can be challenged; and the wish to protect cultural diversity.⁸⁵

In contrast, the Islamic claim is thought to revolve around three issues: the need to insure that the UDHR is not part of a culture war against Islam;⁸⁶ the desire to reject Western values as part of jihad;⁸⁷ and eagerness to preserve Islamic values regarding women's issues, the status of minorities, religious freedom, and corporal punishment.⁸⁸

Western critics of the exceptionalist claim point out that in Asian and Islamic countries economic and social rights were not formally enacted or implemented, let alone fully protected.⁸⁹ The West, too, has strong traditions of family and social responsibility, as well as work and savings ethics.⁹⁰ Critics argue that the adoption of any new technologies and business practices, regardless of the place of origin, requires other cultural adaptations over time.⁹¹ Further, rights derived from obligations or duties are not true rights.⁹² Economic success in Asian and Islamic countries occurred before

83. WILLIAM THEODORE DE BARY, *ASIAN VALUES AND HUMAN RIGHTS* 15 (1998); Michael Freeman, *Human Rights: Asia and The West*, in *HUMAN RIGHTS AND INTERNATIONAL RELATIONS*, *supra* note 20, at 13, 14; Ghai, *supra* note 79, at 56.

84. Monshipouri & Montamemi, *supra* note 57, at 710, 717; Albert H.Y. Chen, *Conclusion: Comparative reflections on Human Rights in Asia*, in *HUMAN RIGHTS IN ASIA*, *supra* note 15, at 487, 506; Karen Engle, *Culture and Human Rights: The Asian Values Debate in Context*, 32 N.Y. UNIV. J. INT'L L. & POL. 291 (1999–2000); Xiaoqun Xu, *Human Rights and the Discourses on Universality: A Chinese Historical Perspective*, in *NEGOTIATING CULTURE*, *supra* note 76, at 217, 235–37.

85. Haq, *supra* note 76, at 251–52.

86. *Id.*; Mayer, *supra* note 74, at 70.

87. Haq, *supra* note 76, at 242.

88. *Id.* at 242, 253.

89. *Does Islam Have an Alternative to Globalization? Interview with Malaysian Journalist Munawar Anees*, 15 NEW PERSPEC. Q. 44 (1998); Ghai, *supra* note 79, at 55; Sharon K. Hom, *Re-Positioning Human Rights Discourse on "Asian" Perspectives*, in *NEGOTIATING CULTURE*, *supra* note 76, at 197, 198–200; Virginia A. Leary, *The Asian Region and the International Human Rights Movement*, in *ASIAN PERSPECTIVES ON HUMAN RIGHTS*, *supra* note 80, at 13, 15, 17; Aryeh Neier, *Asia's Unacceptable Standard*, 92 FOREIGN POL'Y 42, 45 (1993).

90. Edward Friedman, *Asia as Fount of Universal Human Rights*, in *DEBATING HUMAN RIGHTS*, *supra* note 74, at 56, 59.

91. *Does Islam Have an Alternative to Globalization?*, *supra* note 89, at 44–45.

92. Khushalami, *supra* note 79, at 407; Ann Elizabeth Mayer, *Universal Versus Islamic Human Rights: A Clash of Cultures or a Clash with a Construct*, 15 MICH. J. INT'L L. 307, 331 (1994).

the adoption of authoritarian capitalism and any discussion of Asian or Islamic values.⁹³ Finally, modernization is not equivalent to Westernization.⁹⁴

In summary, as an explanation for the persistence of human rights abuses, exceptionalism is a debatable basis for either rejecting UDHR and substituting non-Western alternatives or for justifying outright violations of human rights. In many ways the exceptionalist argument on human rights can be rephrased as “a human right is what the local despot says it is.”⁹⁵ Asian and Islamic arguments for particular, idiosyncratic, narrow, and culturally-based human rights often represent but one often extreme or oversimplified position within a broader set of complex and changing traditions.⁹⁶ Such arguments are at best excuses for rejecting the basic premises of modern human rights—individualism, humanism, and rationalism.⁹⁷ Exceptionalism may result inadvertently: the European emphasis on public reasoning can force the rest of the world to ignore or forget its own experiences with such reasoning.⁹⁸ Furthermore, universal human rights are designed to protect the most vulnerable among us from the disabling and degrading suffering that result from the most threatening features of both modernization and a powerful state.⁹⁹ At a minimum then, universal human rights are necessary because they force us to ask how we can balance what justice requires with what those in power demand.¹⁰⁰

Given the 1997 Asian Financial Crisis and the 2011 Arab Spring, the Asian and Islamic values claims used to reject UDHR rights might be regarded as straw men.¹⁰¹ Ironically, during these two crises both the Asian and Islamic “street” wanted political changes that would provide open access to jobs, economic growth, rule of law, accountability, and the end to corruption and cronyism. All of these desiderata would be protected by a strong commitment to UDHR by governments and NGOs.

Hypocrisy, inconsistencies, and appeasement by Western democracies (and especially the United States and Britain) when citing countries for human

93. Friedman, *supra* note 90, at 59–61.

94. Ronald Inglehart & Christian Welzel, *How Development Leads to Democracy—What We Know About Modernization*, 88 FOREIGN AFF. 33, 38 (2009); Smith, *supra* note 47, at 414.

95. GERALDINE BROOKS, *NINE PARTS OF DESIRE: THE HIDDEN WORLD OF ISLAMIC WOMEN* 287 (1995).

96. Freeman, *supra* note 83, at 15.

97. MAYER, *supra* note 74, at 48.

98. Amartya Sen, *Democracy and its Global Roots: Why Democratization is not the Same as Westernization*, 229 NEW REPUBLIC 28, 33 (6 Oct. 2003).

99. Freeman, *supra* note 83, at 23, 50, 53.

100. *Id.*

101. Barbara Crossette, *Culture, Gender, and Human Rights*, in *CULTURE MATTERS: HOW VALUES SHAPE HUMAN PROGRESS* 180 (Lawrence E. Harrison & Samuel P. Huntington eds., 2000); Engle, *supra* note 84.

rights abuses are seen as major reasons countries continue to ignore human rights abuses. In particular, the administration of George W. Bush and its half-hearted support of democratization, as well as its demands for waivers of applicable human rights commitments for US military personnel, is said to have given a bad name to democracy.¹⁰² Complaints about hypocrisy and double standards come from Asia,¹⁰³ Africa,¹⁰⁴ China,¹⁰⁵ India,¹⁰⁶ the Middle East,¹⁰⁷ and Muslim countries.¹⁰⁸ There are specific complaints about Western policies regarding human rights violations in Bosnia-Herzegovina and Croatia.¹⁰⁹ Concerns about inconsistencies in behavior of Western countries have led to and are said to be embedded in the Bangkok Declaration.¹¹⁰ Similarly, Muslim and Middle Eastern countries have interpreted the double standard issue as evidence of the West's neo-imperial designs on them.¹¹¹

Signing a human rights convention or joining international human right organizations can also be seen as a form of hypocrisy, since signatory states often continue to engage in human rights violations. What is the logic behind signing? First, it is less costly than paying the political costs of relinquishing any authority or rights associated with sovereignty.¹¹² This is especially true for recently independent states. There are other advantages to signing human rights conventions. Internationally, in addition to more equal treatment by other governments, membership in desirable supranational organizations such as NATO, or preferential trade agreements may be offered as a reward. Domestically, a government's credibility may be enhanced, uncertainty regarding future human rights policies may be reduced, domestic reforms may be secured, and worried populations may be reassured.¹¹³

The costs of engaging in such hypocritical behavior are low. Human rights conventions have minimal enforcement mechanisms, making viola-

102. DE LA BARRA & DELLO BUONO, *supra* note 41, at 190; Kurlantzick, *supra* note 63, at 30.

103. Engle, *supra* note 84, at 316.

104. Shadrack B.O. Gutto, *Human and People's Rights in Africa: Myths, Realities, and Prospects*, 12 CURR. AFR. ISSUES 5 (1991).

105. Xu, *supra* note 84, at 234–36; JAMES MANN, *THE CHINA FANTASY: HOW OUR LEADERS EXPLAIN AWAY CHINESE REPRESSION* 77, 82–83 (2007).

106. RANDALL PEERENBOOM, *CHINA MODERNIZES: THREATS TO THE WEST OR MODEL FOR THE REST* 169 (2007).

107. Youssef M. Ibrahim, *Raid on Baghdad: Islamic Nations see Double Standard in U.S. Raid*, N.Y. TIMES, 29 June 1993, at A6.

108. Mayer, *supra* note 92, at 313.

109. Mely Caballero-Anthony, *Human Rights, Economic Change, and Political Development: A Southeast Asian Perspective*, in HUMAN RIGHTS AND INTERNATIONAL RELATIONS, *supra* note 20, at 39, 48; SAMUEL P. HUNTINGTON, *THE THIRD WAVE: DEMOCRATIZATION IN THE LATE TWENTIETH CENTURY* 283 (1993); Ed Vulliamy, *Bosnia: The Crime of Appeasement*, 74 INT'L AFF. 73 (1998).

110. Engle, *supra* note 84, at 316; Ghai, *supra* note 79, at 55.

111. MAYER, *supra* note 74, at 148–49.

112. Emilie M. Hafner-Burton, Edward D. Mansfield, & Jon C. Pevehouse, *Democratization and Human Rights Regimes*, mimeo, nd, 1.

113. *Id.* 4–5; Emilie M. Hafner-Burton, *Trading Human Rights: How Preferential Trade Agreements Influence Government Repression*, 59 INT'L ORG. 593 (2005).

tions feasible.¹¹⁴ Sanctions are rarely imposed, and if they are, they are not onerous.¹¹⁵ Similarly, given the fact that human rights treaties can contain both instrumental and expressive elements,¹¹⁶ some signatory nations assume that there will not be strict enforcement or implementation since no one is going to take the exalted ideals of the UDHR seriously enough to actually demand that nations make the adjustments necessary to comply with them.¹¹⁷ Abuses can also be readily blamed on the social and political tensions that develop as economic development progresses¹¹⁸ or on popular¹¹⁹ or elite demands.¹²⁰ Habitual behavior, where abuses are seen as “normal” opportunistic events, can also be blamed for abuses.¹²¹ Authoritarian governments attempt to justify continued abuses as ways to suppress terrorism, defeat Marxist-Leninist guerillas, or restore law and order. These actions usually are widely supported by the public.¹²² Finally, virtually any country that achieved independence after World War II can claim that abuses are inadvertent consequences of applying old colonial security laws.

A series of strong regional patterns can be associated with *the persistence of corruption, instability, and institutional constraints in newly established democracies*. For example, in Latin America human rights abuses appear to be a paradox, because historically there is a long tradition of concern for human rights throughout the region.¹²³ After World War II, Latin American countries were more open to advocating universal human rights than even the United States or Great Britain, and they sent delegations to United Nations conferences on human rights better prepared than any other group to engage in serious debate and discussion.¹²⁴ Nevertheless, as military rule

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114. Rebecca R. Moore, *Globalization and the Future of U.S. Human Rights Policy*, 21 WASH. Q. 193, 198–99 (1998).
 115. Harold Hongju Koh, Review Essay: *Why Do Nations Obey International Law?*, 106 YALE L. J. 2599, 2601 (1997).
 116. Oona A. Hathaway, *Do Human Rights Treaties Make A Difference?*, 111 YALE L. J. 1940–41 (2002).
 117. Ann Elizabeth Mayer, *Shifting Grounds for Challenging the Authority of International Human Rights Law: Religion as a Malleable and Politicized Pretext for Governmental Noncompliance with Human Rights*, in HUMAN RIGHTS WITH MODESTY: THE PROBLEM OF UNIVERSALISM 349, 354–55 (Andrés Sajó ed., 2004).
 118. Neil J. Mitchell & James M. McCormick, *Economic and Political Explanations of Human Rights Violations*, 40 WORLD POL. 476, 478 (1988).
 119. Rhoda E. Howard, *Occidentalism, Human Rights, and the Obligations of Western Scholars*, 29 CANADIAN J. AFR. STUD. 110, 119 (1995).
 120. Conway W. Henderson, *Conditions Affecting the Use of Political Repression*, 35 J. CONFLICT RESOL. 120, 123 (1991).
 121. Hathaway, *supra* note 116; Mayer, *Shifting Grounds for Challenging the Authority*, *supra* note 117, at 373; Robert E. Goodin, *Comments (to Linz)*, in HUMAN RIGHTS IN PERSPECTIVE: A GLOBAL ASSESSMENT 222 (Asbjørn Eide & Berat Hagtvet eds., 1992); REZA AFSHARI, HUMAN RIGHTS IN IRAN: THE ABUSE OF CULTURAL RELATIVISM 25 (2001).
 122. HUNTINGTON, *supra* note 109, at 214.
 123. CLEARY, *MOBILIZING FOR HUMAN RIGHTS IN LATIN AMERICA*, *supra* note 17, at 1.
 124. *Id.* at 2–3.

and authoritarianism spread across the region, a wide range of human rights abuses, including those against women, children, indigenous peoples, and the landless occurred in increasing frequency in the form of arbitrary arrests, disappearances, expulsions, forced exile, political assassinations, election irregularities, extra-judicial killings, threats, and torture. Often a *coup d'état* would be followed by decrees stripping citizens of political freedoms. There appeared to be no respect for the rule of law, and corruption and fraud in the police and governing bodies became widespread.¹²⁵

Explanations for such patterns of abuse, persistence of corruption, and institutional constraints to reform include: the co-opting of civic leaders with government positions; limited control over police and the military by civilian authorities; the subversion, politicization, and intimidation of judges that result in low conviction rates and lenient penalties for abusers; the lack of accountability due to the presence of a presidential, rather than a parliamentary governmental system; the rise of drug cartels; the preference of the elite and civilian leaders for police maintenance of public safety; the belief, reinforced by the Roman Catholic Church, in elitism, patrimonialism, and corporatism; and the adoption of import-substitution policies that pit entrepreneurs against workers when dealing with issues such as economic efficiency, wages, and benefits.¹²⁶

In the Middle East and presumably Muslim majority countries, Islam is said to play a long term role in perpetuating behaviors, practices, and policies that inhibit democracy, development, and respect for human rights.¹²⁷ For example, Islamic courts and bureaucracies are historically accustomed to dealing with individuals, not corporations. Even when the concept of the corporation is assimilated into Islamic business practices and law, nepotism and corruption continue since judges and government workers still think of transactions as taking place between individuals, and thereby still require bribes. In general, the absence of complimentary institutions, a weak image of civil society, and the inability to deal constructively with economic failure—

125. *Id.* at 1–2, 8, 16, 26, 112, 129; CLEARY, *THE STRUGGLE FOR HUMAN RIGHTS IN LATIN AMERICA*, *supra* note 40, at 8.

126. CLEARY, *MOBILIZING FOR HUMAN RIGHTS*, *supra* note 17, at 17–18, 20, 44; Diamond, *Democracy in Latin America*, *supra* note 17, at 58–59, 72–73; So Near yet so far: *Special Report on Latin America, Democracy, Latino Style: Visible Disorder, Hidden Progress*, 396 *ECONOMIST* 16–17 (11 Sept. 2010); FUENTES, *supra* note 46, at 37; Jean Grugel, “*Basta de Realidades, Queremos Promesas*,” *Democracy after the Washington Consensus*, in *GOVERNANCE AFTER NEOLIBERALISM IN LATIN AMERICA* 25, 29 (Jean Grugel & Pía Riggirozzi eds., 2009); John Sheahan, *Market-oriented Economic Policies and Political Repression in Latin America*, 28 *ECON. DEV. & CULTURAL CHANGE* 267, 273–74, 285 (1980); Arturo Valezuela, *Chile: Origins and Consolidation of Latin American Democracy*, in *POLITICS IN DEVELOPING COUNTRIES: COMPARING EXPERIENCES WITH DEMOCRACY* 67, 87–118 (2d ed. Larry Diamond, Juan J. Linz & Martin Seymour Lipset eds., 1995).

127. TIMUR KURAN, *THE LONG DIVERGENCE: HOW ISLAMIC LAW HELD BACK THE MIDDLE EAST* 293–302 (2011).

all traceable to Islamic law and socio-cultural practices—inhibit economic development, and by extension, democracy and respect for human rights.

The sources of corruption, instability, and institutional constraints in Africa differ from those in Latin America and the Middle East. Given the great ethnic and religious diversity in African countries, the general goals of democracy have been ignored in favor of attempts to ensure national unity, stability, and order.¹²⁸ Furthermore, newly independent African states lack the administrative staffs and trained personnel to manage new societies; instead old authoritarian structures inherited from imperial power¹²⁹ have been adapted and legitimized.¹³⁰ Attempts after 1989 to change the structure of regimes and avoid ethnic manipulation¹³¹ have failed because new political parties have not involved those outside elite circles

Valuable natural resources, in high demand on world markets, have also been implicated in African human rights abuses.¹³² This issue is virtually the same as the one known as the “Curse of Oil” in the Middle East.¹³³ It seems that dictators and monarchs can get rich by mining or otherwise harvesting raw materials and using the income to monopolize all instruments of power—the army, police, intelligence services—while avoiding all transparency or power sharing. Power is maintained, and the threat of a *coup d’état* prevented, by repression, buying off opponents,¹³⁴ high levels of violence,¹³⁵ and massive spending on direct services, subsidies, or government service employment.¹³⁶ As a result, all civic and governmental institutions remain weak if they exist at all. As Friedman understands this process, natural resources obviate the need to raise governmental funding through taxation. If governments have to tax their citizens they need to develop real institutions, guarantee property rights, establish independent courts, develop an education system, engage in foreign trade, attract foreign investment, and permit freedom of thought.¹³⁷ According to Amy Ross, in addition to allowing rulers to co-opt citizens via direct cash payments to subjects, natural resource wealth eliminates the need to make difficult decisions about more

128. FANTU CHERU, *AFRICAN RENAISSANCE: ROADMAPS TO THE CHALLENGE OF GLOBALIZATION* 36 (2002); E. Ike Udogu, *Human Rights and Minorities in Africa: A Theoretical and Conceptual Overview*, 18 J. THIRD WORLD STUD. 87, 101 (2001).

129. Gutto, *supra* note 104, at 9.

130. *Id.*; Larry Diamond, *Nigeria: The Uncivic Society and the Descent into Praetorianism*, in *POLITICS IN DEVELOPING COUNTRIES*, *supra* note 126, at 417, 424.

131. *Id.* at 434.

132. EASTERLY, *supra* note 34, at 123–26; Nathan Jensen & Leonard Wantchekon, *Resource Wealth and Political Regimes in Africa*, 37 COMP. POL. STUD. 816 (2005).

133. THOMAS L. FRIEDMAN, *THE WORLD IS FLAT: A BRIEF HISTORY OF THE TWENTY-FIRST CENTURY* 562–65 (2006); Michael L. Ross, *Does Oil Hinder Democracy?*, 53 WORLD POL. 325 (2001).

134. Jensen & Wantchekon, *supra* note 132, at 821.

135. *Id.* at 818.

136. *Id.* at 820.

137. HUNTINGTON, *supra* note 109, at 65.

efficient use of human resources, including women, and engage in foreign trade, which stimulates innovation.¹³⁸ A related economic argument sees corruption and embezzlement as endemic in a poor country.¹³⁹ All of the above explanations are compounded in many parts of Africa where draconian legal systems, a lack of institutionalized formality regarding marriage, divorce, and inheritance, and open-ended sedition laws contribute to a culture characterized by few democratic traditions, little accountability, and no respect for human rights.¹⁴⁰

As for the Former Soviet Union, its successor states, and more broadly, the countries where some version of Marxism or Socialism is the dominant political framework, institutional constraints that lead to human rights abuses are traced back to varied sources. First, a Russian history of violence applies both to extremist governments, such as those of Ivan IV or Peter the Great, and to the peasantry that engaged in massacres and pogroms.¹⁴¹ Second, the nineteenth century did not provide a long enough liberal tradition to counter totalitarian rule.¹⁴² Third, the French Revolution and World War I exposed both the population and politicians of Russia to cruelties and cheapened the value of human life.¹⁴³ Fourth, the nature and direction of revolution in Russia was influenced by Serge Nechaev and Lenin, among others. Nechaev assumed that revolution would require the quick and merciless destruction of all those who had created a "sick society" in Russia,¹⁴⁴ while Lenin espoused the notion of dehumanizing and animalizing those who were considered enemies and thus expendable.¹⁴⁵ With time, the concept of "enemy" would also become an elastic category, so that executors would become victims and new groups could be eliminated.¹⁴⁶ This approach to dealing with enemies as well as the idea of endless revolution would also be taken up enthusiastically by communist parties in China and Southeast Asia.¹⁴⁷ Fifth, the Russian Revolution created a situation of crisis where the possibility of the state disintegrating was real, so terror was used to insure a strong, stable state.¹⁴⁸ Sixth, once the Bolsheviks seized power, Lenin imposed a policy of violence on the party.¹⁴⁹ No overt signs of opposition to this policy were

138. Ross, *supra* note 133.

139. MUGAWANYA, *supra* note 19, at 73.

140. *Id.* at 83, 165.

141. Stéphane Courtois, *Conclusion: Why? in THE BLACK BOOK OF COMMUNISM: CRIMES, TERROR AND REPRESSION 727, 731* (Stéphane Courtois, et al. eds., Jonathan Murphy & Mark Kramer trans. 1999).

142. Pleshakov, *supra* note 20, at 126.

143. Courtois, *supra* note 141, at 727, 731.

144. *Id.* at 730.

145. *Id.* at 749.

146. *Id.* at 747.

147. *Id.* at 740, 748, 754.

148. Pleshakov, *supra* note 20, at 128.

149. Courtois, *supra* note 141, at 740.

expressed by other parties or social movements.¹⁵⁰ Even the leadership of the Russian Orthodox Church capitulated to the pressure of the state and opted not to fight even for the protection of human dignity.¹⁵¹ Finally, the intellectual framework of Marxist-Leninism contributed to the continuing culture of violence in two ways. First, Marxist-Leninism was enveloped in an aura of “Scientism” based on Social Darwinism.¹⁵² Thus the imposed institutional constraints and accompanying human rights abuses were portrayed as having a scientific basis. Second, Marx and Engels promoted a strong anti-liberal tradition in Western thought,¹⁵³ and this perspective would have a lasting impact not only on Russia, but on China, Laos, Cambodia, and Vietnam as well.¹⁵⁴

These constraints remained in place after the fall of the Soviet Union in 1991. In reality the communist system was not dismantled and the heads of successor states, despite having been duly elected, were in fact former regional rulers.¹⁵⁵ To make matters worse, nongovernmental human rights and civil society organizations, both domestic and foreign, have been so marginalized that they are limited as to what actions they can take to reduce constraints to human rights. This has presented Russian leaders with a dilemma: although they would like to protect ethnic Russians living in the former Soviet republics, they are helpless to do so given past human rights policies.¹⁵⁶ And the repatriation of some 30 million Russians is not seen as an alternative to negotiating the fate of their Russian brethren.¹⁵⁷

The *chaos dominating what were heralded as free and open elections* has also cast a pall on the virtuous cycle linking democracy and respect for human rights. In particular, the political chaos and resultant economic and social instability in Russia,¹⁵⁸ Iraq,¹⁵⁹ and the Palestinian Authority,¹⁶⁰ not to mention Afghanistan, have been cited as examples of the negative effects of elections on the human rights situation in these countries. In fact, even the threat of Islamist parties assuming power after winning elections has resulted in civil war and deterioration of human rights.¹⁶¹ This paradox,

150. *Id.* at 732–37.

151. Pleshakov, *supra* note 20, at 125.

152. Courtois, *supra* note 141, at 752.

153. IAN BURUMA & AVISHAI MARGALIT, OCCIDENTALISM: THE WEST IN THE EYES OF ITS ENEMIES 24–32, 76–79, 88–99 (2004).

154. Hugo Stokke, *Modernization without Westernization?*, in HUMAN RIGHTS AND ASIAN VALUES: CONTESTING NATIONAL IDENTITIES AND CULTURAL REPRESENTATIONS IN ASIA 141 (Michael Jacobsen & Ole Bruun eds., 2000).

155. Pleshakov, *supra* note 20, at 128.

156. *Id.* at 132–33.

157. *Id.* at 134.

158. Pleshakov, *supra* note 20, at 127–28.

159. Kurlantzick, *supra* note 63, at 30.

160. HUMPHREY HAWKSLEY, DEMOCRACY KILLS: WHAT IS SO GOOD ABOUT HAVING THE VOTE? 123 (2009).

161. BROOKS, *supra* note 95, at 190.

where democratic processes permit a majority to elect a government committed to abolishing democracy, leads those concerned about human rights to ask why authoritarian or autocratic governments would permit free elections in the first place.¹⁶²

Irregular or paramilitary forces as well as off-duty death squads have been implicated in "disappearances," extrajudicial killings, kidnappings, rapes, threats, forced labor, political assassinations, indiscriminant attacks by guerillas, and the murder of judges, prosecutors, journalists, and politicians in Latin America¹⁶³ and Africa.¹⁶⁴ During the wars in Bosnia-Herzegovina, irregulars would blockade shipments of food and supplies for cities.¹⁶⁵ Whether these fighters act on behalf of powerful landowners or businessmen or for their own revolutionary purposes, they not only target civilians but also local and international human rights workers and representatives of NGOs.¹⁶⁶ The presence of irregular or paramilitary forces presents governments with multiple political human rights related challenges. Regardless of who commits the human rights abuse, the national government inevitably gets blamed for not protecting its vulnerable populations, whether they be landless peasants or indigenous groups. They are also faulted for not being able to control the guilty perpetrators. Such abuses bring into question the sincerity and seriousness of governments claiming to respect human rights and trying to improve their own human rights record.

VIII. HOW TO PROCEED?

The processes contributing to the ten possible theories proposed above to explain persistent human rights abuses can operate either serially or simultaneously in a country. It is therefore perhaps no surprise that the maps and data they are based on did not show any systematic improvement in human rights abuses. That conclusion leads to an important question: If we wish to pursue an agenda designed to improve human rights, how should we proceed? The most obvious choice methodologically for geographers would be to build a regression model incorporating the various measures

162. EASTERLY, *supra* note 34, at 120; *Lexington: Huntington's Clash*, 390 *ECONOMIST* 25 (30 Dec. 2008).

163. Diamond, *Democracy in Latin America*, *supra* note 17, at 58–59, 72–73; Kathryn A. Sikkink, *Nongovernmental Organizations, Democracy, and Human Rights in Latin America*, in *BEYOND SOVEREIGNTY*, *supra* note 17, at 150, 158–59.

164. MUGAWANYA, *supra* note 19, at 55.

165. Pat Towell, *Senators Broach Using Military to Quiet Bosnia-Herzegovina*, 50 *CONG. Q. WKLY REP.* 1714, 1714–15 (13 June 1992).

166. MUGAWANYA, *supra* note 19, at 55; Sikkink, *NGOs, Democracy and Human Rights*, *supra* note 163.

of abuse used in the maps with key measures for each of the nine possible explanations for abuse. Although the resulting model might clearly indicate the combinations and permutations of risk factors for abuse in each country, I doubt the model will generate viable policy options. Therefore, I will take another approach and review those options for intervention recommended in the human rights literature.

One approach is to assume each country is *sui generis*¹⁶⁷ and rely on a bottom up approach to confronting human rights issues. This strategy has been successful especially in enacting changes in legal systems to support economic development and women's rights.¹⁶⁸ Under this approach local human rights workers are advised:

- to use resources internal to their culture when confronting economic, political, and social crises;¹⁶⁹
- to engage in social action;¹⁷⁰
- to support the democratization of education to deflect the self-centered, money-oriented attitudes of the educated elite;¹⁷¹
- to propose legal reforms;¹⁷² and
- to push for economic modernization with the accompanying virtuous circle of development, democracy, and human rights (since it is hard to imagine long-term prosperity under an authoritarian government).¹⁷³

This approach doubts the efficacy of international campaigns, especially those that seek to embarrass rights-abusing individuals or elites.¹⁷⁴

In contrast, there are those who recommend relying heavily on the international organizations to take the lead and carry the burden of extend-

167. Bilahari Kim Hee P.S. Kausikan, *An East Asian Approach to Human Rights*, 2 BUFFALO J. INT'L L. 263 (1995–96).

168. EASTERLY, *supra* note 34, at 97; NICHOLAS D. KRISTOFF & SHERYL WUDUNN, *HALF THE SKY: TURNING OPPRESSION INTO OPPORTUNITY FOR WOMEN WORLDWIDE* 226–29 (2009); JIM IFE, *HUMAN RIGHTS FROM BELOW, ACHIEVING RIGHTS THROUGH COMMUNITY DEVELOPMENT* (2010).

169. Nikhil Aziz, *The Human Rights Debates in an Era of Globalization: Hegemony of Discourse*, in *DEBATING HUMAN RIGHTS*, *supra* note 74, at 32, 46; CLEARY, *THE STRUGGLE FOR HUMAN RIGHTS IN LATIN AMERICA*, *supra* note 17, at 27; Rodriguez, *supra* note 50, at 395.

170. *Id.*

171. Jayant Lele & Fahimul Quadir, *Introduction: Democracy and Development in Asia in the 21st Century: In Search of Popular Democratic Alternatives*, in *DEMOCRACY AND CIVIL SOCIETY IN ASIA*, VOL. 2: DEMOCRATIC TRANSITIONS AND SOCIAL MOVEMENTS IN ASIA 1, 15–16 (Jayant Lele & Fahimul Quadir eds., 2004); Willa Friedman, Michael Kremer, Edward Miguel & Rebecca Thornton, *Education as Liberation?*, National Bureau of Economic Research, Working Paper 16939 (Apr. 2011), available at <http://www.nber.org/papers/w16939>.

172. BROOKS, *supra* note 95, at 287.

173. EBERLY, *supra* note 24, at 238; FAREED ZAKARIA, *THE POST-AMERICAN WORLD* 218, 232 (2008); Robert Ingelhart & Christian Welzel, *How Development Leads to Democracy—What We Know About Modernization*, 88 FOREIGN AFF. 284 (2009); Tan, *supra* note 33.

174. BROOKS, *supra* note 95, at 287; EASTERLY, *supra* note 34, at 145; GARETH EVANS, *THE RESPONSIBILITY TO PROTECT: ENDING MASS ATROCITY CRIMES ONCE AND FOR ALL* 19–20 (2008).

ing human rights so long as this work is carried out in a culturally sensitive manner.¹⁷⁵ This position has become increasingly problematic, however. It is becoming apparent that academic and professional organizations and societies are increasingly reluctant to mount campaigns on behalf of individuals or groups suffering from human rights abuses, lest doing so might lessen their chances of conducting joint research with scientists from that country at some future date.¹⁷⁶

A more accommodating position acknowledges that although the West cannot single-handedly confront other cultures, international human rights organizations do have a role to play in supporting local human rights groups.¹⁷⁷ They can gather, publish, and disseminate documentation on a country-by-country basis on the status of human rights. They can provide testimony to international organizations on the state of human rights, offer training for human rights and labor leaders, members of the police, the military, the judiciary, local elites, and politicians, and they can work to rebuild justice systems and encourage the rule of law.¹⁷⁸ For their part, local human rights groups are charged with the same challenges and goals they would have assumed in the absence of international assistance. Added to this list would be working at issue creation and agenda setting within the elite, proposing new human rights legislation as well as institutional procedures and reforms, actually engaging in discourse with the government over human rights issues, and monitoring state compliance with human rights obligations.¹⁷⁹

One final suggested approach for improving human rights is to increase use of regional human rights councils. In Africa these have been reasonably successful in disseminating information about human rights abuses, providing early warnings of impending human rights problems, and advancing early action mechanisms to curb human rights abuses.¹⁸⁰

IX. CONCLUSION

It is important to remember that the analysis and explanation of maps of human rights abuses included in this article represent but one approach

175. DE BARY, *supra* note 83, at 9; FALK, *supra* note 44, at 175.

176. Declan Butler, *Human-Rights Shift Under Fire*, 475 NATURE 431–32 (28 July 2011), available at <http://www.nature.com/news/2011/110727/full/475431a.html>.

177. Lynda S. Bell, *Who Produces Asian Identity? Discourse, Discrimination, and Chinese Peasant Women in the Quest for Human Rights*, in NEGOTIATING CULTURE, *supra* note 76, at 21, 39–40; FUENTES, *supra* note 46, at 3, 23; Robinson, *supra* note 61, at 30.

178. EVANS, *supra* note 174; FUENTES, *supra* note 46, at 3; Sikkink, *NGOs, Democracy and Human Rights*, *supra* note 163, at 155–56.

179. FUENTES, *supra* note 46, at 23.

180. MUGAWANYA, *supra* note 19, at 53.

geographers can use when approaching human rights issues. Over the twentieth and twenty-first centuries geographers have fashioned and revised a series of organizational and methodological "traditions."¹⁸¹ In addition the subject matter of geography has been divided into categories: systematic (concentrating on specific subjects such as political geography, economic geography, urban geography, and environmental geography), regional geography, and spatial techniques (including quantitative and qualitative analysis, computer cartography, GIS, and remote sensing). Contemporary geographers conduct their research within a multitude of philosophical and epistemological orientations including positivism, humanism, Marxism (radical and critical), postmodernism, feminism, applied, post-structuralism, and post-colonialism.¹⁸² Furthermore, contemporary geographers have much more sophisticated means of accessing, mapping, and analyzing data than previously dreamed. This means that geographers focusing on human rights issues have multiple ways of approaching and reporting their findings. The challenge for human rights researchers is to discover how this variety of approaches can be incorporated in their work. For geographers the challenge is two-fold: to make their work more accessible to the human rights community by publishing more broadly and to incorporate the research of the human rights community into their own work. This dual strategy approach has proven useful in Asian and Jewish Studies.¹⁸³

181. William D. Pattison, *The Four Traditions of Geography*, 63 J. GEOG. 211 (1964); Salvatore J. Natoli, *Guidelines for Geographic Education and the Fundamental Themes in Geography*, 93 J. GEOG. 2 (1994); Kevin Archer, *A Folk Guide to Geography as a Holistic Science*, 94 J. GEOG. 404 (1995); J. Lewis Robinson, *A New Look at the Four Traditions in Geography*, 75 J. GEOG. 520 (1976).

182. R.J. JOHNSTON & J.D. SIDAWAY, *GEOGRAPHY AND GEOGRAPHERS: ANGLO-AMERICAN HUMAN GEOGRAPHY SINCE 1945*, at 189 (6th ed. 2004).

183. See generally 59 J. ASIAN STUD. (2000), for a group of seven articles by Asianists using spatial concepts. Similarly see *LAND AND COMMUNITY: GEOGRAPHY IN JEWISH STUDIES* (Harold Brodsky ed., 1997), for a set of twenty-four articles on various Jewish topics by geographers.